

**INTERGOVERNMENTAL AGREEMENT  
FOR RIGHT OF WAY SERVICES**  
Althouse Creek (Talkima Road) Bridge

THIS AGREEMENT is made and entered into by and between the STATE OF OREGON, acting by and through its Department of Transportation, hereinafter referred to as "State" or "ODOT"; and JOSEPHINE COUNTY, acting by and through its elected officials, hereinafter referred to as "Agency," both herein referred to individually as "Party" and collectively as "Parties."

**RECITALS**

1. By the authority granted in Oregon Revised Statute (ORS) 190.110, 283.110, 366.572 and 366.576, a state agency may enter into agreements with units of local government or other state agencies for the performance of any or all functions and activities that the state agency, its officers, or agents have the authority to perform.
2. By the authority granted in ORS 366.425, State may accept deposits of money or an irrevocable letter of credit from any county, city, road district, person, firm, or corporation for the performance of work on any public highway within the State. Money so deposited shall be disbursed for the purpose for which it was deposited.
3. Talkima Road and Althouse Creek Bridge No. 33C16 are a part of the county road system under the jurisdiction and control of Agency.
4. State is responsible for delivering the Althouse Creek (Talkima Road) Bridge project ("Project") under Misc. Contacts and Agreements, Agreement Number 73000-14155 executed on January 20, 2023 ("Project Agreement") attached hereto as Exhibit C and by this reference made a part hereof.
5. This Agreement covers a subset of the work set forth in the Project Agreement; therefore, the Project Agreement describes the general scope and funding for the right of way activities carried out under this Agreement. This Agreement further defines the roles and responsibilities of the Parties regarding real property to be used as part of the right of way for the Project, and further refines the details of the scope and funding for these right of way activities.
6. As of the Effective Date of this Agreement, there are no local public agencies ("LPAs") certified to independently administer federal-aid projects for right of way services. State is ultimately responsible for the certification and oversight of all right of way activities under this Agreement.

**NOW THEREFORE**, the premises being in general as stated in the foregoing Recitals, it is agreed by and between the Parties hereto as follows:

## TERMS OF AGREEMENT

1. Under such authority, to accomplish the objectives in the Project Agreement, State agrees to perform the right of way Services shown in Exhibit A - Special Provisions ("Services"), attached hereto and by this reference made a part hereof.
2. The Parties agree to comply with the terms of this Agreement and the applicable terms of Project Agreement in performing the Services. In the event of a direct conflict, the terms of the Project Agreement will control over any conflicting provision in this Agreement.
3. Exhibits Attached and Incorporated.
  - a. This Agreement includes the following exhibits, each of which is attached and incorporated into this Agreement by reference as though fully set forth herein:
    - Exhibit A – Special Provisions
    - Exhibit B – Resolution Exercising The Power of Eminent Domain
    - Exhibit C - Project Agreement
4. This Agreement becomes effective on the date all required signatures are obtained ("Effective Date"). Services shall begin on or after the Effective Date and shall be completed no later than December 31, 2030, on which date this Agreement automatically expires unless extended by a fully executed amendment.
5. Both Parties will strictly follow the rules, policies and procedures of the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970, as amended and implemented through Title 49, Part 24, ORS Chapter 35 and the ODOT Right of Way Manual, located at <https://www.oregon.gov/ODOT/ROW/Documents/ROW-Manual.pdf> and incorporated herein by this reference. Each Party will require its contractors and subcontractors, if any, to comply with this provision.
6. The funding and payment for the Services are set forth in the Project Agreement. This Agreement commits no additional funding for the Services.
  - a. Under no condition shall State's obligations under this Agreement exceed \$111,800.00, including all expenses, unless agreed upon by both Parties in writing in a fully executed amendment to this Agreement. This maximum is the amount programmed in the STIP for the right of way phase of the Project.
  - i. Agency agrees to reimburse State for all expenses, including salaries and other personnel expenses (OPE) of State employees performing Services, direct costs, costs of rental equipment used, travel expenses, and per-diem expenditures. Travel expenses shall be reimbursed in accordance with the current Oregon Department of Administrative Services rates as contained in the Oregon Accounting Manual (OAM), which can be found at:  
  
<https://www.oregon.gov/das/Financial/Acctng/Documents/40.10.00.pdf>.

- ii. For Services provided under this Agreement, Agency may satisfy its funding requirement through a contribution of real property for the Project. Credit for this contribution will only be allowed if the contribution complies with all requirements of 23 CFR 710.501 and 710.507 and if written approval is obtained from State's Active Transportation Section, Program and Funding Services Manager and FHWA prior to the start of the right of way phase of the Project and after review for compliance with State's procedures for donations and contributions.

## STATE OBLIGATIONS

1. State shall perform the Services assigned to State in Exhibit A.
2. State's right of way contact person for this Agreement is Justin Shoemaker, Transportation Project Manager, 100 Antelope Road, White City, OR 97503, 541-200-5784, justin.d.shoemaker@odot.oregon.gov, or assigned designee upon individual's absence. State shall notify the other Party in writing of any contact changes during the term of this Agreement.

## AGENCY OBLIGATIONS

1. Agency shall perform the Services assigned to Agency in Exhibit A. All Services provided by Agency shall comply with ODOT's Right of Way Manual in effect at the time the Services are performed.
2. Agency certifies, at the time this Agreement is executed, that sufficient funds are available and authorized for expenditure to finance costs of this Agreement within Agency's current appropriation or limitation of current budget. Agency is willing and able to finance its share of all costs and expenses incurred under this Agreement up to the maximum amount set forth in Terms of Agreement Paragraph 6.
3. Agency's performance of Services.
  - a. In performing Services under this Agreement, Agency may utilize qualified individuals from Agency's staff or the Staff of another local public agency, as described in the ODOT Right of Way Manual and approved by the State's Region Right of Way Office.
  - b. Agency may also request State act as the lead contracting agency and deliver a consultant contract on behalf of Agency, using consultants from State's Full Service Architectural and Engineering (A&E) Price Agreement 2 Tier Selection Process, as applicable. Tier 2 procurements must be requisitioned through State's Local Agency Liaison (LAL) with solicitation process administered by State's Procurement Office. Forms and procedures for Tier 2 process are located at: [https://www.oregon.gov/odot/Business/Procurement/FS23/Full\\_Service\\_LPA\\_Project\\_User\\_Guide.docx](https://www.oregon.gov/odot/Business/Procurement/FS23/Full_Service_LPA_Project_User_Guide.docx).
  - c. Agency's needed right of way services may be performed by utilizing appraiser Services procured by Agency from State's Qualified Appraiser List (online at:

[https://www.oregon.gov/ODOT/ROW/Documents/Appraisal\\_Qualified-Consultant-List.pdf](https://www.oregon.gov/ODOT/ROW/Documents/Appraisal_Qualified-Consultant-List.pdf)) or other right of way related Services procured by Agency from any source of qualified contractors or consultants.

- d. Contractor selections under Agency Obligations, Paragraphs 3.c above may be based on price alone, price and qualifications, or qualifications alone followed by negotiation. **Federally funded procurements** carried out by Agency for right of way Services must be conducted under State's certification program for consultant selection and must comply with requirements in the [LPA A&E Requirements Guide](#), and must use the State's standard [A&E Contract Template for LPAs](#) which may be modified to include State-approved provisions required by Agency. **State and locally funded procurements** carried out by Agency must comply with applicable State rules and statutes for A&E "Related Services" (Agency may use its own contract document). The LPA A&E Requirements Guide and A&E Contract Template are available at: <https://www.oregon.gov/ODOT/Business/Procurement/Pages/LPA.aspx>.
4. If Agency intends to use Agency staff, staff of another local public agency, consultants (except for consultants on State's Qualified Appraiser List), or contractors to perform Services under this Agreement, Agency must receive prior written approval from State's Region Right of Way Office.
5. Agency shall require its contractor(s) and subcontractor(s) that are not units of local government as defined in ORS 190.003, if any, to indemnify, defend, save and hold harmless the State of Oregon, Oregon Transportation Commission and its members, Oregon Department of Transportation and its officers, employees and agents from and against any and all claims, actions, liabilities, damages, losses, or expenses, including attorneys' fees, arising from a tort, as now or hereafter defined in ORS 30.260 ("Claims"), to the extent such Claims are caused, or alleged to be caused, by the negligent or willful acts or omissions of Agency's contractor or any of the officers, agents, employees or subcontractors of the contractor. It is the specific intention of the Parties that State shall, in all instances, except to the extent Claims arise solely from the negligent or willful acts or omissions of State, be indemnified from and against all Claims caused or alleged to be caused by the contractor or subcontractor.
6. Any such indemnification shall also provide that neither the Agency's contractor or subcontractor nor any attorney engaged by Agency's contractor or subcontractor shall defend any claim in the name of the State of Oregon or any agency of the State of Oregon, nor purport to act as legal representative of the State of Oregon or any of its agencies, without the prior written consent of the Oregon Attorney General. The State of Oregon may, at any time at its election assume its own defense and settlement in the event that it determines that Agency's contractor is prohibited from defending the State of Oregon, or that Agency's contractor is not adequately defending the State of Oregon's interests, or that an important governmental principle is at issue or that it is in the best interests of the State of Oregon to do so. The State of Oregon reserves all rights to pursue claims it may have against Agency's contractor if the State of Oregon elects to assume its own defense.

7. Agency shall perform all Services under this Agreement as an independent contractor and shall be exclusively responsible for all costs and expenses related to its employment of individuals to perform the Services under this Agreement including, but not limited to, retirement contributions, workers compensation, unemployment taxes, and state and federal income tax withholdings.
8. When Agency is performing Services under this Agreement, Agency shall ensure that temporary pedestrian routes are provided through or around any Project work zone. Any such temporary pedestrian route shall include directional and informational signs, comply with ODOT standards, and include accessibility features equal to or better than the features present in the existing pedestrian facility. Agency shall also ensure that advance notice of any temporary pedestrian route is provided in accessible format to the public, people with disabilities, and disability organizations at least 10 days prior to the start of construction.
9. Agency certifies and represents that all individuals signing this Agreement have been authorized to enter into and execute this Agreement on behalf of Agency, under the direction or approval of its governing body, commission, board, officers, members or representatives, and to legally bind Agency.
10. Agency acknowledges and agrees that State, the Oregon Secretary of State's Office, the federal government, and their duly authorized representatives shall have access to the books, documents, papers, and records of Agency which are directly pertinent to this Agreement for the purpose of making audit, examination, excerpts, and transcripts for a period of six (6) years after final payment. Copies of applicable records shall be made available upon request. Payment for costs of copies is reimbursable by State.
11. Agency shall comply with all federal, state, and local laws, regulations, executive orders and ordinances applicable to the Services under this Agreement, including, without limitation, the provisions of ORS 279B.220, 279B.225, 279B.230, 279B.235 and 279B.270 incorporated herein by reference and made a part hereof. Without limiting the generality of the foregoing, Agency expressly agrees to comply with (i) Title VI of Civil Rights Act of 1964; (ii) Title V and Section 504 of the Rehabilitation Act of 1973; (iii) the Americans with Disabilities Act of 1990 and ORS 659A.142; (iv) all regulations and administrative rules established pursuant to the foregoing laws; and (v) all other applicable requirements of federal and state civil rights and rehabilitation statutes, rules and regulations.
12. Agency shall upon State's request provide copies of any required documentation related to the Services as described in Exhibit A.
13. Agency's right of way contact person for this Agreement is Neil Burgess, County Engineer, 201 River Heights Way, Grants Pass, OR 97527, 541-474-5460, nburgess@josephinecounty.gov, or assigned designee upon individual's absence. Agency shall notify the other Party in writing of any contact information changes during the term of this Agreement.

**GENERAL PROVISIONS:**

1. Termination.

- a. This Agreement may be terminated by mutual written consent of both Parties.
  - b. This Agreement may be terminated by either Party upon thirty (30) days' notice, in writing, and delivered by certified mail or in person, under any of the following conditions:
    - i. If either Party fails to provide Services called for by this Agreement within the time specified herein or any extension thereof.
    - ii. If either Party fails to perform any of the other provisions of this Agreement or so fails to pursue the Services as to endanger performance of this Agreement in accordance with its terms, and after receipt of written notice fails to correct such failures within ten (10) days or such longer period as may be authorized.
  - c. State may terminate this Agreement effective upon delivery of written notice to Agency, or at such later date as may be established by State, under any of the following conditions:
    - i. If State fails to receive funding, appropriations, limitations or other expenditure authority sufficient to allow State, in the exercise of its reasonable administrative discretion, to continue to make payments for performance of this Agreement.
    - ii. If Agency fails to provide payment of its share of the cost of the Project.
    - iii. If federal or state laws, regulations or guidelines are modified or interpreted in such a way that either the Services under this Agreement is prohibited or State is prohibited from paying for such Services from the planned funding source.
  - d. Any termination of this Agreement shall not prejudice any rights or obligations accrued to the Parties prior to termination.
2. All employers that employ subject workers who perform Services under this Agreement in the State of Oregon shall comply with ORS 656.017 and provide the required workers' compensation coverage unless such employers are exempt under ORS 656.126. Employers Liability insurance with coverage limits of not less than \$500,000 must be included. Both Parties shall ensure that each of its subcontractors complies with these requirements.
3. If any third party makes any claim or brings any action, suit or proceeding alleging a tort as now or hereafter defined in ORS 30.260 ("Third Party Claim") against State or Agency with respect to which the other Party may have liability, the notified Party must promptly notify the other Party in writing of the Third Party Claim and deliver to the other Party a copy of the claim, process, and all legal pleadings with respect to the Third Party Claim. Each Party is entitled to participate in the defense of a Third Party Claim and to defend a Third Party Claim with counsel of its own choosing. Receipt by a Party of the notice and copies required in this paragraph and meaningful opportunity for the Party to participate in the investigation,

defense and settlement of the Third Party Claim with counsel of its own choosing are conditions precedent to that Party's liability with respect to the Third Party Claim.

4. With respect to a Third Party Claim for which State is jointly liable with Agency (or would be if joined in the Third Party Claim), State shall contribute to the amount of expenses (including attorneys' fees), judgments, fines and amounts paid in settlement actually and reasonably incurred and paid or payable by Agency in such proportion as is appropriate to reflect the relative fault of State on the one hand and of Agency on the other hand in connection with the events which resulted in such expenses, judgments, fines or settlement amounts, as well as any other relevant equitable considerations. The relative fault of State on the one hand and of Agency on the other hand shall be determined by reference to, among other things, the Parties' relative intent, knowledge, access to information and opportunity to correct or prevent the circumstances resulting in such expenses, judgments, fines or settlement amounts. State's contribution amount in any instance is capped to the same extent it would have been capped under Oregon law, including the Oregon Tort Claims Act, ORS 30.260 to 30.300, if State had sole liability in the proceeding.
5. With respect to a Third Party Claim for which Agency is jointly liable with State (or would be if joined in the Third Party Claim), Agency shall contribute to the amount of expenses (including attorneys' fees), judgments, fines and amounts paid in settlement actually and reasonably incurred and paid or payable by State in such proportion as is appropriate to reflect the relative fault of Agency on the one hand and of State on the other hand in connection with the events which resulted in such expenses, judgments, fines or settlement amounts, as well as any other relevant equitable considerations. The relative fault of Agency on the one hand and of State on the other hand shall be determined by reference to, among other things, the Parties' relative intent, knowledge, access to information and opportunity to correct or prevent the circumstances resulting in such expenses, judgments, fines or settlement amounts. Agency's contribution amount in any instance is capped to the same extent it would have been capped under Oregon law, including the Oregon Tort Claims Act, ORS 30.260 to 30.300, if it had sole liability in the proceeding.
6. The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement. In addition, the Parties may agree to utilize a jointly selected mediator or arbitrator (for non-binding arbitration) to resolve the dispute short of litigation.
7. Agency, as a recipient of federal funds, pursuant to this Agreement with the State, shall assume sole liability for Agency's breach of any federal statutes, rules, program requirements and grant provisions applicable to the federal funds, and shall, upon Agency's breach of any such conditions that requires the State to return funds to the Federal Highway Administration, hold harmless and indemnify the State for an amount equal to the funds received under this Agreement.
8. Agency and State are the only Parties to this Agreement and are the only Parties entitled to enforce its terms. Nothing in this Agreement gives, is intended to give, or will be construed to give or provide, any benefit or right, whether directly, indirectly, or otherwise, to third persons unless such third persons are individually identified by name herein and expressly described as intended beneficiaries of the terms of this Agreement.

9. The Parties hereto agree that if any term or provision of this Agreement is declared by a court of competent jurisdiction to be invalid, unenforceable, illegal or in conflict with any law, the validity of the remaining terms and provisions shall not be affected, and the rights and obligations of the Parties shall be construed and enforced as if the Agreement did not contain the particular term or provision held to be invalid.
10. This Agreement may be executed in several counterparts (facsimile or otherwise) all of which when taken together shall constitute one agreement binding on all Parties, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of this Agreement so executed shall constitute an original.
11. This Agreement and attached exhibits constitute the entire agreement between the Parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Agreement. No waiver, consent, modification or change of terms of this Agreement shall bind either Party unless in writing and signed by both Parties and all necessary approvals have been obtained. Such waiver, consent, modification or change, if made, shall be effective only in the specific instance and for the specific purpose given. The failure of State to enforce any provision of this Agreement shall not constitute a waiver by State of that or any other provision.
12. Survival. All rights and obligations of the Parties under this Agreement will cease upon termination or expiration of this Agreement, other than the rights and obligations of the parties that by their nature or express terms survive termination or expiration of this Agreement.

**THE PARTIES**, by execution of this Agreement, hereby acknowledge that their signing representatives have read this Agreement, understand it, and agree to be bound by its terms and conditions.

**Signature Page to Follow**

JOSEPHINE COUNTY, by and through  
elected officials

By \_\_\_\_\_  
Ron Smith, Chair

Date \_\_\_\_\_

By \_\_\_\_\_  
Colene Martin, Vice Chair

Date \_\_\_\_\_

By \_\_\_\_\_  
Gary Richardson, Commissioner

Date \_\_\_\_\_

**LEGAL REVIEW APPROVAL (If required  
in Agency's process)**

By \_\_\_\_\_  
Agency's Counsel

Date \_\_\_\_\_

**Agency Contact:**

Neil Burgess  
County Engineer  
201 River Heights Way  
Grants Pass, OR 97527  
541-474-5460  
[nburgess@josephinecounty.gov](mailto:nburgess@josephinecounty.gov)

**State Contact:**

Justin Shoemaker  
Transportation Project Manager  
100 Antelope Road  
White City, OR 97503  
541-200-5784  
[Justin.d.shoemaker@odot.oregon.gov](mailto:Justin.d.shoemaker@odot.oregon.gov)

STATE OF OREGON, by and through  
its Department of Transportation

By \_\_\_\_\_  
State Right of Way Manager

Date \_\_\_\_\_

**APPROVAL RECOMMENDED**

By \_\_\_\_\_  
Region 3 Right of Way Manager

Date \_\_\_\_\_

**APPROVED**

(If Litigation Services related to Condemnation  
are to be done by State)

By s/ Kristen Boyd  
\_\_\_\_ Interim Chief Trial Counsel

Date \_\_\_\_\_

**Exhibit A**  
**SPECIAL PROVISIONS**  
**Right of Way Services**

**A. Preliminary Phase:** State or Agency shall perform the Services outlined in this Section A during the preliminary right of way phase of the Project as identified below. When Services listed under this Section A are performed by Agency, Agency shall charge the Services as preliminary engineering expenditures.

1. State shall prepare preliminary cost estimates.
2. State shall make preliminary contacts with property owners.
3. State shall gather and prepare data for environmental documents.
4. State shall develop access and approach road list.
5. State shall help prepare field location and project data as defined in the Project Agreement.
6. Title. State shall provide preliminary title reports, if State determines they are needed, before negotiations for acquisition commence.
7. Legal Descriptions:
  - a. State shall prepare sufficient horizontal control, recovery and retracement surveys, vesting deeds, maps and other data so that legal descriptions can be written.
  - b. State shall prepare construction plans and cross-section information for the Project.
  - c. State shall write legal descriptions and prepare right of way maps. If the Agency acquires any right of way on a State highway, the property descriptions and right of way maps shall be based upon centerline stationing and shall be prepared in accordance with the current ODOT [Right of Way Engineering Manual](https://www.oregon.gov/ODOT/ETA/Documents_Geomtronics/ROW-Eng-Manual.pdf), located at [https://www.oregon.gov/ODOT/ETA/Documents\\_Geomtronics/ROW-Eng-Manual.pdf](https://www.oregon.gov/ODOT/ETA/Documents_Geomtronics/ROW-Eng-Manual.pdf) and incorporated herein by reference. The preliminary and final versions of the property descriptions and right of way maps must be reviewed and approved by the State.
  - d. State shall specify the degree of title to be acquired (e.g., fee, easement), which must be determined in accordance with the current ODOT Right of Way Manual.
8. Hazmat:
  - a. State shall conduct a Phase 1 Environmental Site Assessment, according to State Guidance, within Project limits to detect presence of hazardous materials on any property purchase, excavation or disturbance of structures, as early in the Project design as possible, but at a minimum prior to property acquisition or approved design.

- b. State shall conduct a Level 2 Preliminary Site Investigation, according to ODOT's Hazmat Program Manual and other applicable requirements of the Oregon Department of Environmental Quality, of sufficient scope to confirm the presence of contamination, determine impacts to properties and develop special provisions and cost estimates, if the Phase 1 Environmental Site Assessment indicates the potential presence of contamination that could impact the properties. If contamination is found, State will promptly disclose the severity and extent of contamination to Agency and present a recommendation for remediation to Agency as set forth in ODOT's Right of Way Manual Section 6.330 paragraph 2.
- c. The State shall attempt to have the property owner undertake any necessary remediation at the property owner's expense. Other options are set forth in ODOT's Right of Way Manual section 6.330 paragraph 2.b. If State undertakes any remediation on the site, Agency will be solely responsible for any liability that may arise from such remediation.

**B. Right of Way Phase:** State or Agency shall perform the Services outlined in this Section B during the acquisition right of way phase of the Project as identified below. When Services listed under this Section B are performed by Agency, Agency shall charge the Services as right of way expenditures.

1. Right of Way Acquisition:

- a. Right of Way Acquisition is the process of obtaining property necessary for the Project, from negotiation to possession of the property, using various sub-processes including, but not limited to, appraisal, negotiation, condemnation, relocation, title closing, and project related property management related to the potential exercise of eminent domain. The basic requirements for carrying out right of way acquisition for the Project are set forth in this Section B.
- b. When performing the right of way acquisition Services, State shall provide Agency with a monthly status report of the Services.
- c. Title to properties acquired shall be in the name of State.
- d. The Agency shall adopt a resolution of intention and determination of necessity in accordance with ORS 35.235 and ORS 35.610, authorizing acquisition and condemnation ("Resolution"). Agency's Resolution shall be substantially in the form of Exhibit B, attached hereto and by this reference made a part hereof.
- e. The Agency delegates, and the State accepts, the Agency's authority pursuant to all relevant common law, statutes, ordinances, and other authorities, to acquire and condemn property on Agency's behalf for the Project, where such acquisition or condemnation is made necessary by the Project.
- f. The Agency shall adopt a resolution of intention and determination of necessity in accordance with ORS 35.235 and ORS 35.610, authorizing acquisition and

condemnation ("Resolution"). Agency's Resolution shall be substantially in the form of Exhibit B, attached hereto and by this reference made a part hereof. If the Agency would like the Oregon Department of Justice (DOJ) to provide legal or litigation Services related to the condemnation work identified in this Agreement on Agency's behalf, DOJ must provide approval prior to performance of the Right of Way Services under this Agreement. To secure DOJ assistance, ODOT's Region Right of Way Manager must submit a written request to DOJ's Chief Trial Counsel, the Agency must expressly and officially request and authorize DOJ representation for the condemnation on the Project, and the signature of DOJ's Chief Trial Counsel must be obtained on this Agreement.

2. Real Property and Title Insurance:

- a. State shall determine sufficiency of title (taking subject to). If the Agency acquires any right of way on a State highway, sufficiency of title (taking subject to) shall be determined in accordance with the current ODOT Right of Way Manual, and after obtaining State's concurrence. Agency shall clear any encumbrances necessary to conform to these requirements, obtain Title Insurance policies as required and provide the State copies of any title policies for the properties acquired.
- b. Agency shall accept conveyed property "as-is" and in accordance with ORS 93.808. State is not required to provide any additional Services to Agency, including but not limited to payment, documentation, platting, surveying, or remediation, beyond those specifically set forth in this Agreement.

3. Appraisal:

- a. State shall conduct the valuation process of properties to be acquired. If hazardous materials are located on the property, State shall use section 6.330, paragraph 2 in ODOT's Right of Way Manual.
- b. State shall perform the appraisal reviews to set just compensation.
- c. State shall recommend just compensation, based upon a review of the valuation by qualified personnel.

4. Negotiations:

- a. State shall tender all monetary offers to landowners in writing at the compensation level shown in the appraisal review. State shall have sole authority to negotiate and make all settlement offers. When settlements for property acquisitions are made for more or less than the approved just compensation amount, a justification is required. Said statement will include the consideration of any property trades, construction obligations and zoning or permit concessions. If State performs this function, it will provide the Agency with all pertinent letters, negotiation records and obligations incurred during the acquisition process.

- b. State and Agency shall determine a date for certification of right of way and agree to cosign the State's Right of Way Certification form. State and Agency agree possession of all right of way is complete prior to advertising for any construction contract, unless otherwise agreed to by Agency and State.
  - c. State agrees to file all Recommendations for Condemnation (Form 734-3311 and accompanying documents) with ODOT right of way headquarters, at least seventeen (17) weeks prior to the right of way certification date if negotiations have not been successful on those properties.
5. Relocation:
- a. State shall perform any relocation assistance, make replacement housing computations, and do all things as required by applicable state and federal law necessary to relocate any persons displaced by the Project.
  - b. State shall determine all relocation benefits each property owner is eligible for and shall make all relocation and moving payments.
  - c. State shall facilitate the relocation appeal process.

#### **C. Closing Phase**

- 1. State shall close all transactions. This includes drawing of deeds, releases and satisfactions necessary to clear title, obtaining signatures on release documents, and making all payments.
- 2. Upon acceptance by State the conveyance documents shall be recorded.

#### **D. Property Management**

- 1. State shall take possession of all the acquired properties. There shall be no encroachments of buildings or other private improvements allowed upon the State highway right of way.
- 2. State shall dispose of all improvements and excess land consistent with applicable state, federal, and local laws and policies.
- 3. State shall conduct asbestos, lead paint and other hazardous materials surveys for all structures that will be demolished, renovated or otherwise disturbed. Asbestos surveys must be conducted by an AHERA (asbestos hazard emergency response act) certified inspector.

#### **E. Condemnation**

- 1. State may offer mediation if the State and property owners have reached an impasse.

2. State shall perform all administrative functions in preparation of the condemnation process, such as preparing final offer and complaint letters.
3. State shall perform all legal and litigation Services related to the condemnation process, including all settlement offers. Prior approval of this Agreement by DOJ and passage of an Agency Resolution are required as provided in Section B.1.e above.
4. When State performs legal or litigation Services related to the condemnation process, Agency acknowledges, agrees and undertakes to assure that no member of Agency's board or council, nor Agency's mayor, when such member or mayor is a practicing attorney, nor Agency's attorney(s), nor any member of the law firm of Agency's attorney(s), board or council member(s), or mayor, nor any other employee or representative of Agency licensed to practice law, will represent any party, except Agency, against the State of Oregon, its employees or contractors, in any matter arising from or related to the Project or the Services.

#### **F. Transfer of Right of Way to State**

When right of way is being acquired in Agency's name, Agency agrees to transfer and State agrees to accept all right of way acquired on the State highway. Agency shall identify the existence of any hazardous materials on or in the property prior to the transfer. The specific method of conveyance will be determined by the Agency and the State at the time of transfer and shall be coordinated by the State's Region Right of Way Manager. Agency agrees to provide the State all information and file documentation the State deems necessary to integrate the right of way into the State's highway system. At a minimum, this includes: copies of all recorded conveyance documents used to vest title in the name of the Agency during the right of way acquisition process, and the Agency's Final Report or Summary Report for each acquisition file that reflects the terms of the acquisition and all agreements with the property owner(s).

#### **G. Transfer of Right of Way to Agency**

When right of way is being acquired in State's name, State agrees to transfer and Agency agrees to accept, at no additional cost to the State, all right of way acquired on the Agency's facility, subject to concurrence from the Oregon Transportation Commission and FHWA at the time of the transfer. State shall identify the existence of any hazardous materials on or in the property prior to the transfer. The specific method of conveyance will be determined by the State and the Agency at the time of transfer and shall be coordinated by the State's Region Right of Way Manager. If requested, State agrees to provide Agency information and file documentation associated with the transfer.

**EXHIBIT B**  
**SAMPLE RESOLUTION EXERCISING THE POWER OF EMINENT DOMAIN**  
**Right of Way Services**

WHEREAS (insert title of agency) may exercise the power of eminent domain pursuant to (Agency's charter) (statutes conferring authority) and the Law of the State of Oregon generally, when the exercise of such power is deemed necessary by the (insert title of agency)'s governing body to accomplish public purposes for which (insert title of agency) has responsibility;

WHEREAS (insert title of agency) has the responsibility of providing safe transportation routes for commerce, convenience and to adequately serve the traveling public;

WHEREAS the project or projects known as (insert Project name) have been planned in accordance with appropriate engineering standards for the construction, maintenance or improvement of said transportation infrastructure such that property damage is minimized, transportation promoted, travel safeguarded; and

WHEREAS to accomplish the project or projects set forth above it is necessary to acquire the interests in the property described in "Exhibit A" attached to this Resolution and, by this reference incorporated herein; now, therefore,

BE IT HEREBY RESOLVED by (Agency's Council, Commission, or Board)

1. The foregoing statements of authority and need are, in fact, the case. The project or projects for which the property is required and is being acquired are necessary in the public interest, and the same have been planned, designed, located, and will be constructed in a manner which will be most compatible with the greatest public good and the least private injury;
2. The power of eminent domain is hereby exercised with respect to each of the interests in property described in Exhibit A to this Resolution. Each is acquired subject to payment of just compensation and subject to procedural requirements of Oregon law;
3. ([Insert title of Agency]'s staff and [attorney/counsel] --OR-- (The Oregon Department of Transportation and the Attorney General) are authorized and requested to attempt to agree with the owner and other persons in interest as to the compensation to be paid for each acquisition, and, in the event that no satisfactory agreement can be reached, to commence and prosecute such condemnation proceedings as may be necessary to finally determine just compensation or any other issue appropriate to be determined by a court in connection with the acquisition. This authorization is not intended to expand the jurisdiction of any court to decide matters determined above or determinable by the (Agency's Council, Commission, or Board).

4. (insert title of agency) expressly reserves its jurisdiction to determine the necessity or propriety of any acquisition, its quantity, quality, or locality, and to change or abandon any acquisition.

DATED this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_

[insert signature blocks here]

Attachments: Exhibit A to Exhibit B to Agency Resolution Exercising the Power of  
Eminent Domain – Property Description

Exhibit A to Exhibit B - Agency Resolution Exercising the Power of Eminent  
Domain – Property Description

## Exhibit C

A156-G092921

**ODOT Delivered Federal Project  
On Behalf of Josephine County  
Democrat Creek (Takilma Road) Bridge  
Key Number: 23161**

THIS AGREEMENT ("Agreement") is made and entered into by and between the STATE OF OREGON, acting by and through its Department of Transportation, hereinafter referred to as "State" or "ODOT," and the JOSEPHINE COUNTY, acting by and through its elected officials, hereinafter referred to as "Agency," both herein referred to individually as "Party" and collectively as "Parties."

### RECITALS

1. By the authority granted in Oregon Revised Statute (ORS) 190.110, 366.572 and 366.576, state agencies may enter into cooperative agreements with counties, cities and units of local governments for the performance of any or all functions and activities that a party to the Agreement, its officers, or agents have the authority to perform
2. Takilma Road and Democrat Creek Bridge No. 33C16 are a part of the county road system under the jurisdiction and control of Agency.
3. Agency has agreed that State will deliver this project on behalf of the Agency.
4. The Project was selected as a part of the Local Bridge Program (LBP) and may include a combination of federal and state funds. "Project" is defined under Terms of Agreement, paragraph 1 of this Agreement.
5. The Stewardship and Oversight Agreement On Project Assumption and Program Oversight By and Between Federal Highway Administration, Oregon Division and the State of Oregon Department of Transportation ("Stewardship Agreement") documents the roles and responsibilities of the State with respect to project approvals and responsibilities regarding delivery of the Federal Aid Highway Program. This includes the State's oversight and reporting requirements related to locally administered projects. The provisions of that agreement are hereby incorporated and included by reference.

NOW THEREFORE the premises being in general as stated in the foregoing Recitals, it is agreed by and between the Parties hereto as follows:

### TERMS OF AGREEMENT

1. Under such authority, Agency and State agree to State delivering the Democrat Creek (Takilma Road) Bridge on behalf of Agency, hereinafter referred to as "Project." Project includes replacement of the existing bridge to meet current standards. The location of the Project is approximately as shown on the map attached hereto, marked "Exhibit A," and by this reference made a part hereof.
2. Agency agrees that, if State hires a consultant to design the Project, State will serve as the

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lead contracting agency and contract administrator for the consultant contract related to the work under this Agreement

3 Project Costs and Funding

- a. The total Project cost is estimated at \$3,050,900.00, which is subject to change. Federal funds for this Project shall be limited to \$2,737,572.57. Agency shall be responsible for all remaining costs, including any non-participating costs, all costs in excess of the federal funds, and the 10.27 percent match for all eligible costs. Any unused funds obligated to this Project will not be paid out by State, and will not be available for use by Agency for this Agreement or any other projects. "Total Project Cost" means the estimated cost to complete the entire Project, and includes any federal funds, state funds, local matching funds, and any other funds
  - b. With the exception of Americans with Disabilities Act of 1990-related design standards and exceptions, State shall consult with Agency on Project decisions that impact Total Project Cost involving the application of design standards, design exceptions, risks, schedule, and preliminary engineering charges, for work performed on roadways under local jurisdiction. State will allow Agency to participate in regular meetings and will use all reasonable efforts to obtain Agency's concurrence on plans. State shall consult with Agency prior to making changes to Project scope, schedule, or budget. However, State may award a construction contract up to ten (10) percent (%) over engineer's estimate without prior approval of Agency.
  - c. Federal funds under this Agreement are provided under Title 23, United States Code.
  - d. ODOT does not consider Agency to be a subrecipient or contractor under this Agreement for purposes of federal funds. The Catalog of Federal Domestic Assistance (CFDA) number for this Project is 20.205, title Highway Planning and Construction.
  - e. State will submit the requests for federal funding to the Federal Highway Administration (FHWA). The federal funding for this Project is contingent upon approval of each funding request by FHWA. Any work performed outside the period of performance or scope of work approved by FHWA will be considered nonparticipating and paid for at Agency expense.
  - f. Agency guarantees the availability of Agency funding in an amount required to fully fund Agency's share of the Project.
4. The term of this Agreement shall begin on the date all required signatures are obtained and shall terminate upon completion of the Project and final payment or ten (10) calendar years following the date all required signatures are obtained, whichever is sooner.
5. Termination.
- a. This Agreement may be terminated by mutual written consent of both Parties.
  - b. State may terminate this Agreement upon 30 days' written notice to Agency.

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- c. State may terminate this Agreement effective upon delivery of written notice to Agency, or at such later date as may be established by State, under any of the following conditions:
    - i. If Agency fails to provide services called for by this Agreement within the time specified herein or any extension thereof
    - ii. If Agency fails to perform any of the other provisions of this Agreement, or so fails to pursue the work as to endanger performance of this Agreement in accordance with its terms, and after receipt of written notice from State fails to correct such failures within ten (10) days or such longer period as State may authorize.
    - iii. If Agency fails to provide payment of its share of the cost of the Project.
    - iv. If State fails to receive funding, appropriations, limitations or other expenditure authority sufficient to allow State, in the exercise of its reasonable administrative discretion, to continue to make payments for performance of this Agreement.
    - v. If federal or state laws, regulations or guidelines are modified or interpreted in such a way that either the work under this Agreement is prohibited or if State is prohibited from paying for such work from the planned funding source.
  - d. Any termination of this Agreement shall not prejudice any rights or obligations accrued to the Parties prior to termination.
- 6 Americans with Disabilities Act Compliance:
- a. When the Project scope includes work on sidewalks, curb ramps, or pedestrian-activated signals or triggers an obligation to address curb ramps or pedestrian signals, the Parties shall:
    - i. Utilize ODOT standards to assess and ensure Project compliance with Section 504 of the Rehabilitation Act of 1973 and the Americans with Disabilities Act of 1990 as amended (together, "ADA"), including ensuring that all sidewalks, curb ramps, and pedestrian-activated signals meet current ODOT Highway Design Manual standards;
    - ii. Follow ODOT's processes for design, construction, or alteration of sidewalks, curb ramps, and pedestrian-activated signals, including using the ODOT Highway Design Manual, ODOT Design Exception process, ODOT Standard Drawings, ODOT Construction Specifications, providing a temporary pedestrian accessible route plan and current ODOT Curb Ramp Inspection form;
    - iii. At Project completion, send a completed ODOT Curb Ramp Inspection Form 734-5020 to the address on the form as well as to State's Project Manager for each curb ramp constructed or altered as part of the Project. The completed form is the documentation required to show that each curb ramp meets ODOT standards and is ADA compliant. ODOT's fillable Curb Ramp Inspection Form and instructions are available at the following address:

<https://www.oregon.gov/ODOT/Engineering/Pages/Accessibility.aspx>

- b. Agency shall ensure that any portions of the Project under Agency's maintenance jurisdiction are maintained in compliance with the ADA throughout the useful life of the Project. This includes, but is not limited to, Agency ensuring that:
    - i. Pedestrian access is maintained as required by the ADA,
    - ii. Any complaints received by Agency identifying sidewalk, curb ramp, or pedestrian-activated signal safety or access issues are promptly evaluated and addressed,
    - iii. Agency, or abutting property owner, pursuant to local code provisions, performs any repair or removal of obstructions needed to maintain the facility in compliance with the ADA requirements that were in effect at the time the facility was constructed or altered,
    - iv. Any future alteration work on Project or Project features during the useful life of the Project complies with the ADA requirements in effect at the time the future alteration work is performed, and
    - v. Applicable permitting and regulatory actions are consistent with ADA requirements.
  - c. Maintenance obligations in this section shall survive termination of this Agreement
7. State shall ensure compliance with the Cargo Preference Act and implementing regulations (46 CFR Part 381) for use of United States-flag ocean vessels transporting materials or equipment acquired specifically for the Project. Strict compliance is required, including but not limited to the clauses in 46 CFR 381.7(a) and (b) which are incorporated by reference. State shall also include this requirement in all contracts and ensure that contractors include the requirement in their subcontracts.
8. Agency grants State the right to enter onto Agency right of way for the performance of duties as set forth in this Agreement.
9. The Parties acknowledge and agree that State, the Oregon Secretary of State's Office, the federal government, and their duly authorized representatives shall have access to the books, documents, papers, and records of the Parties which are directly pertinent to the specific Agreement for the purpose of making audit, examination, excerpts, and transcripts for a period of six (6) years after completion of the Project and final payment. Copies of applicable records shall be made available upon request. Payment for costs of copies is reimbursable by the requesting party.
10. The Special and Standard Provisions attached hereto, marked Attachments 1 and 2, respectively, are incorporated by this reference and made a part hereof. The Standard Provisions apply to all federal-aid projects and may be modified only by the Special Provisions. The Parties hereto mutually agree to the terms and conditions set forth in Attachments 1 and 2. In the event of a conflict, this Agreement shall control over the attachments, and Attachment 1 shall control over Attachment 2.

11. Agency shall assume sole liability for Agency's breach of any federal statutes, rules, program requirements and grant provisions applicable to the federal funds, and shall, upon Agency's breach of any such conditions that requires the State to return funds to FHWA, hold harmless and indemnify the State for an amount equal to the funds received under this Agreement.
12. Agency and State are the only parties to this Agreement and are the only parties entitled to enforce its terms. Nothing in this Agreement gives, is intended to give, or shall be construed to give or provide any benefit or right, whether directly, indirectly or otherwise, to third persons unless such third persons are individually identified by name herein and expressly described as intended beneficiaries of the terms of this Agreement.
13. State and Agency hereto agree that if any term or provision of this Agreement is declared by a court of competent jurisdiction to be invalid, unenforceable, illegal or in conflict with any law, the validity of the remaining terms and provisions shall not be affected, and the rights and obligations of the Parties shall be construed and enforced as if the Agreement did not contain the particular term or provision held to be invalid.
14. Notwithstanding anything in this Agreement or implied to the contrary, the rights and obligations set out in the following paragraphs of this Agreement shall survive Agreement expiration or termination, as well as any provisions of this Agreement that by their context are intended to survive: Terms of Agreement Paragraphs 3.e (Funding), 5.d (Termination), 6.b (ADA maintenance), 9-14, 17 (Integration, Merger; Waiver), and Attachment 2, paragraphs 1 (Project Administration), 7, 9, 11, 13 (Finance), and 37-41 (Maintenance and Contribution)
15. Agency certifies and represents that the individual(s) signing this Agreement has been authorized to enter into and execute this Agreement on behalf of Agency, under the direction or approval of its governing body, commission, board, officers, members or representatives, and to legally bind Agency.
16. This Agreement may be executed in several counterparts all of which when taken together shall constitute one agreement binding on all Parties, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of this Agreement so executed shall constitute an original.
17. This Agreement and attached exhibits constitute the entire agreement between the Parties on the subject matter hereof. In the event of conflict, the body of this Agreement and the attached exhibits will control over Project application and documents provided by Agency to State. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Agreement. No waiver, consent, modification or change of terms of this Agreement shall bind either party unless in writing and signed by both Parties and all necessary approvals have been obtained. Such waiver, consent, modification or change, if made, shall be effective only in the specific instance and for the specific purpose given. The failure of State to enforce any provision of this Agreement shall not constitute a waiver by State of that or any other provision. Notwithstanding this provision, the Parties may enter into a Right Of Way Services Agreement in furtherance of the Project.

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18. State's Contract Administrator for this Agreement is Justin Shoemaker, Transportation Project Manager, 100 Antelope Road, White City, OR 97503, 541-200-5784, Justin.d.shoemaker@odot.oregon.gov, or assigned designee upon individual's absence. State shall notify the other Party in writing of any contact information changes during the term of this Agreement.

19. Agency's Contract Administrator for this Agreement is Neil Burgess, County Engineer, 201 River Heights Way, Grants Pass, OR, 97527, 541-474-5460, nburgess@josephinecounty.gov, or assigned designee upon Individual's absence. Agency shall notify the other Party in writing of any contact information changes during the term of this Agreement.

**THE PARTIES**, by execution of this Agreement, hereby acknowledge that their signing representatives have read this Agreement, understand it, and agree to be bound by its terms and conditions

This Project is in the 2021-2024 Statewide Transportation Improvement Program (STIP), (Key #23161) that was adopted by the Oregon Transportation Commission on July 15, 2020 (or subsequently by amendment to the STIP)

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JOSEPHINE COUNTY, by and through its  
elected officials

By *Thomas E. Bartsch*  
Title CHAIR

Date 01.11.23

By *[Signature]*  
Title VICE-CHAIR

Date 01.11.23

By *Daniel E. DeYoung*  
Title Commissioner

Date 01.11.23

LEGAL REVIEW APPROVAL (If required  
in Agency's process)

By *Mark Hickey*  
Agency Counsel

Date 01.11.23

**Agency Contact:**

Neil Burgess  
County Engineer  
201 River Heights Way  
Grants Pass, OR 97527  
541-474-5460  
nburgess@josephinecounty.gov

**State Contact:**

Justin Shoemaker  
Transportation Project Manager  
100 Antelope Road  
White City, OR 97503  
541-200-5784  
Justin.d.shoemaker@odot.oregon.gov

STATE OF OREGON, by and through  
its Department of Transportation

By *Neil Burgess*  
Delivery & Operations Division Manager

Date 01/20/2023

**APPROVAL RECOMMENDED**

By *Daniel E. DeYoung*  
Region 3 Manager

Date 01/13/2023

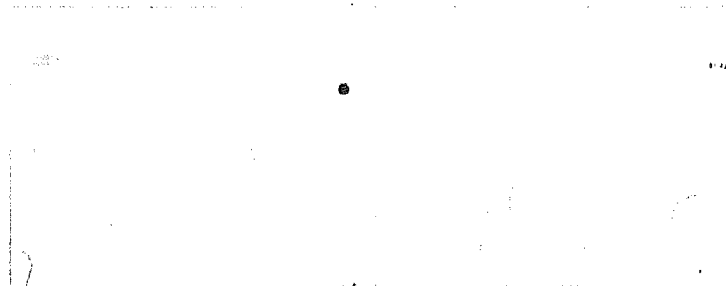
**APPROVED AS TO LEGAL  
SUFFICIENCY**

By Jennifer O'Brien Via-email  
Assistant Attorney General

Date 12/14/22

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**EXHIBIT A – Project Location Map**



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**ATTACHMENT NO. 1 to AGREEMENT NO. 73000-00014155**  
**SPECIAL PROVISIONS**

1. State or its consultant shall conduct all work components necessary to complete the Project, except for those responsibilities specifically assigned to Agency in this Agreement
  - a. State or its consultant shall conduct preliminary engineering and design work required to produce final plans, specifications, and cost estimates in accordance with current state and federal laws and regulations; obtain all required permits; acquire necessary right of way and easements; and arrange for all utility relocations and adjustments
  - b. State will advertise, bid, and award the construction contract. Upon State's award of the construction contract, a consultant hired and overseen by the State shall be responsible for contract administration and construction engineering & inspection, including all required materials testing and quality documentation. State shall make all contractor payments.
  - c. State will perform project management and oversight activities throughout the duration of the Project. The cost of such activities will be billed to the Project
  - d. Within ninety (90) days of the Issuance of Second Notification pursuant to Oregon Standard Specification 00180.50(g), State will:
    - i. Notify State's Local Agency Bridge Inspection Coordinator Richard.J.King@odot.oregon.gov and bridge@odot.oregon.gov to ensure the initial inspection will be scheduled, and
    - ii. State will schedule an inspection with Agency, State's Project Manager under this Agreement, and State's Region Senior Structural Designer or State's Senior Local Bridge Standards Engineer.

State will submit to Agency following documents:

  - i. As-Constructed Bridge Drawings;
  - ii. Foundation Report;
  - iii. Hydraulic Report including Scour Analysis;
  - iv. Pile Records and drill logs (if applicable); and
  - v. Final Load Rating with a stamped report
2. State and Agency agree that the useful life of this Project is defined as 75 years.
3. If Agency fails to meet the requirements of this Agreement or the underlying federal regulations, State may withhold the Agency's proportional share of Highway Fund distribution necessary to reimburse State for costs incurred by such Agency breach

## ATTACHMENT NO. 2 FEDERAL STANDARD PROVISIONS

### PROJECT ADMINISTRATION

1. State (ODOT) is acting to fulfill its responsibility to the Federal Highway Administration (FHWA) by the administration of this Project, and Agency (i.e. county, city, unit of local government, or other state agency) hereby agrees that State shall have full authority to carry out this administration. If requested by Agency or if deemed necessary by State in order to meet its obligations to FHWA, State will act for Agency in other matters pertaining to the Project. Prior to taking such action, State will confer with Agency concerning actions necessary to meet federal obligations. State and Agency shall each assign a person in responsible charge 'liaison' to coordinate activities and assure that the interests of both Parties are considered during all phases of the Project.
2. Any project that uses federal funds in project development is subject to plans, specifications and estimates (PS&E) review and approval by FHWA or State acting on behalf of FHWA prior to advertisement for bid proposals, regardless of the source of funding for construction.
3. State will provide or secure services to perform plans, specifications and estimates (PS&E), construction contract advertisement, bid, award, contractor payments and contract administration. A State-approved consultant may be used to perform preliminary engineering, right of way and construction engineering services.
4. Agency may perform only those elements of the Project identified in the special provisions.

### PROJECT FUNDING REQUEST

5. State shall submit a separate written Project funding request to FHWA requesting approval of federal-aid participation for each project phase including a) Program Development (Planning), b) Preliminary Engineering (National Environmental Policy Act - NEPA, Permitting and Project Design), c) Right of Way Acquisition, d) Utilities, and e) Construction (Construction Advertising, Bid and Award). Any work performed prior to FHWA's approval of each funding request will be considered nonparticipating and paid for at Agency expense. State, its consultant or Agency shall not proceed on any activity in which federal-aid participation is desired until such written approval for each corresponding phase is obtained by State. State shall notify Agency in writing when authorization to proceed has been received from FHWA. All work and records of such work shall be in conformance with FHWA rules and regulations.

### FINANCE

6. Federal funds shall be applied toward Project costs at the current federal-aid matching ratio, unless otherwise agreed and allowable by law. Agency shall be responsible for the entire match amount for the federal funds and any portion of the Project, which is not covered by federal funding, unless otherwise agreed to and specified in the Intergovernmental Agreement (Project Agreement). Agency must obtain written approval from State to use in-kind contributions rather than cash to satisfy all or part of the matching funds requirement. If federal funds are used, State will specify the Catalog of Federal Domestic Assistance (CFDA) number in the Project Agreement. State will also determine and clearly state in the Project Agreement if recipient is a subrecipient or contractor, using the criteria in 2 CFR 200.331.

7. If the estimated cost exceeds the total matched federal funds available, Agency shall deposit its share of the required matching funds, plus 100 percent of all costs in excess of the total matched federal funds. Agency shall pay one hundred (100) percent of the cost of any item in which FHWA will not participate. If Agency has not repaid any non-participating cost, future allocations of federal funds or allocations of State Highway Trust Funds to Agency may be withheld to pay the non-participating costs. If State approves processes, procedures, or contract administration that result in items being declared non-participating by FHWA, such items deemed non-participating will be negotiated between Agency and State. Agency agrees that costs incurred by State and Agency for services performed in connection with any phase of the Project shall be charged to the Project, unless otherwise mutually agreed upon by the Parties.
8. Agency's estimated share and advance deposit
  - a) Agency shall, prior to commencement of the preliminary engineering and/or right of way acquisition phases, deposit with State its estimated share of each phase. Exception may be made in the case of projects where Agency has written approval from State to use in-kind contributions rather than cash to satisfy all or part of the matching funds requirement.
  - b) Agency's construction phase deposit shall be one hundred ten (110) percent of Agency's share of the engineer's estimate and shall be received prior to award of the construction contract. Any additional balance of the deposit, based on the actual bid, must be received within forty-five (45) days of receipt of written notification by State of the final amount due, unless the contract is cancelled. Any balance of a cash deposit in excess of amount needed, based on the actual bid, will be refunded within forty-five (45) days of receipt by State of the Project sponsor's written request.
  - c) Pursuant to Oregon Revised Statutes (ORS) 366.425, the advance deposit may be in the form of 1) money deposited in the State Treasury (an option where a deposit is made in the Local Government Investment Pool), and an Irrevocable Limited Power of Attorney is sent to State's Active Transportation Section, Funding and Program Services Unit, or 2) an Irrevocable Letter of Credit issued by a local bank in the name of State, or 3) cash or check submitted to the Oregon Department of Transportation.
9. If Agency makes a written request for the cancellation of a federal-aid project, Agency shall bear one hundred (100) percent of all costs incurred as of the date of cancellation. If State was the sole cause of the cancellation, State shall bear one hundred (100) percent of all costs incurred. If it is determined that the cancellation was caused by third parties or circumstances beyond the control of State or Agency, Agency shall bear all costs, whether incurred by State or Agency, either directly or through contract services, and State shall bear any State administrative costs incurred. After settlement of payments, State shall deliver surveys, maps, field notes, and all other data to Agency.
10. Agency shall make additional deposits, as needed, upon request from State. Requests for additional deposits shall be accompanied by an itemized statement of expenditures and an estimated cost to complete the Project.
11. Agency shall, upon State's written request for reimbursement in accordance with Title 23, CFR part 630.112(c) 1 and 2, as directed by FHWA, reimburse State for federal-aid funds distributed to Agency if any of the following events occur:

- a) Right of way acquisition is not undertaken or actual construction is not started by the close of the twentieth federal fiscal year following the federal fiscal year in which the federal-aid funds were authorized for right of way acquisition. Agency may submit a written request to State's Liaison for a time extension beyond the twenty (20) year limit with no repayment of federal funds and State will forward the request to FHWA. FHWA may approve this request if it is considered reasonable.
  - b) Right of way acquisition or actual construction of the facility for which preliminary engineering is undertaken is not started by the close of the tenth federal fiscal year following the federal fiscal year in which the federal-aid funds were authorized. Agency may submit a written request to State's Liaison for a time extension beyond the ten (10) year limit with no repayment of federal funds and State will forward the request to FHWA. FHWA may approve this request if it is considered reasonable.
12. State shall, on behalf of Agency, maintain all Project documentation in keeping with State and FHWA standards and specifications. This shall include, but is not limited to, daily work records, quantity documentation, material invoices and quality documentation, certificates of origin, process control records, test results, and inspection records to ensure that the Project is completed in conformance with approved plans and specifications.
13. State shall submit all claims for federal-aid participation to FHWA in the normal manner and compile accurate cost accounting records. State shall pay all reimbursable costs of the Project. Agency may request a statement of costs-to-date at any time by submitting a written request. When the final total cost of the Project has been computed, State shall furnish Agency with an itemized statement. Agency shall pay an amount which, when added to said advance deposit and federal reimbursement payment, will equal one hundred (100) percent of the final total cost of the Project. Any portion of deposits made in excess of the final total cost of the Project, minus federal reimbursement, shall be released to Agency. The actual cost of services provided by State will be charged to the Project expenditure account(s) and will be included in the final total cost of the Project.

#### DESIGN STANDARDS

14. Agency and State agree that minimum design standards on all local agency jurisdictional roadway or street projects on the National Highway System (NHS) and projects on the non-NHS shall be the American Association of State Highway and Transportation Officials (AASHTO) standards and be in accordance with State's Oregon Bicycle & Pedestrian Design Guide (current version). State or its consultant shall use either AASHTO's A Policy on Geometric Design of Highways and Streets (current version) or State's Resurfacing, Restoration and Rehabilitation (3R) design standards for 3R projects. State or its consultant may use AASHTO for vertical clearance requirements on Agency's jurisdictional roadways or streets.
15. Agency agrees that if the Project is on the Oregon State Highway System or a State-owned facility, that design standards shall be in compliance with standards specified in the current ODOT Highway Design Manual and related references. Construction plans for such projects shall be in conformance with standard practices of State and all specifications shall be in substantial compliance with the most current Oregon Standard Specifications for Highway Construction and current Contract Plans Development Guide.
16. State and Agency agree that for all projects on the Oregon State Highway System or a State-owned facility, any design element that does not meet ODOT Highway Design Manual design standards must be justified and documented by means of a design exception. State and Agency further agree that for all projects on the NHS, regardless of funding source, any design element that does not

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meet AASHTO standards must be justified and documented by means of a design exception. State shall review any design exceptions on the Oregon State Highway System and retain authority for said approval. FHWA shall review any design exceptions for projects subject to Project of Division Interest and retains authority for their approval

17. ODOT agrees all traffic control devices and traffic management plans shall meet the requirements of the current edition of the Manual on Uniform Traffic Control Devices and Oregon Supplement as adopted in Oregon Administrative Rule (OAR) 734-020-0005. State or its consultant shall, on behalf of Agency, obtain the approval of the State Traffic Engineer prior to the design and construction of any traffic signal, or illumination to be installed on a state highway pursuant to OAR 734-020-0430.

#### PRELIMINARY & CONSTRUCTION ENGINEERING

18. Preliminary engineering and construction engineering may be performed by either a) State, or b) a State-approved consultant. Engineering work will be monitored by State to ensure conformance with FHWA rules and regulations. Project plans, specifications and cost estimates shall be performed by either a) State, or b) a State-approved consultant. State shall review and approve Project plans, specifications and cost estimates. State shall, at project expense, review, process and approve, or submit for approval to the federal regulators, all environmental statements. State shall offer Agency the opportunity to review the documents prior to advertising for bids.
19. Architectural, engineering, photogrammetry, transportation planning, land surveying and related services (A&E Services) as needed for federal-aid transportation projects must follow the State's processes to ensure federal reimbursement. State will award, execute, and administer the contracts. State's personal services contracting process and resulting contract document will follow Title 23 CFR part 172, 2 CFR part 1201, ORS 279A.055, 279C 110, 279C 125, OAR 731-148-0130, OAR 731-148-0220(3), OAR 731-148-0260 and State Personal Services Contracting Procedures, as applicable and as approved by the FHWA. Such personal services contract(s) shall contain a description of the work to be performed, a project schedule, and the method of payment. No reimbursement shall be made using federal-aid funds for any costs incurred by Agency or the state approved consultant prior to receiving authorization from State to proceed.
20. The State or its consultant responsible for performing preliminary engineering for the Project shall, as part of its preliminary engineering costs, obtain all Project related permits necessary for the construction of said Project. Said permits shall include, but are not limited to, access, utility, environmental, construction, and approach permits. All pre-construction permits will be obtained prior to advertisement for construction.
21. State shall prepare construction contract and bidding documents, advertise for bid proposals, award all construction contracts, and administer the construction contracts.
22. Upon State's award of a construction contract, State shall perform quality assurance and independent assurance testing in accordance with the FHWA-approved Quality Assurance Program found in State's Manual of Field Test Procedures, process and pay all contractor progress estimates, check final quantities and costs, and oversee and provide intermittent inspection services during the construction phase of the Project.
23. State shall, as a Project expense, assign a liaison to provide Project monitoring as needed throughout all phases of Project activities (preliminary engineering, right-of-way acquisition, and construction). State's liaison shall process reimbursement for federal participation costs.

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#### Disadvantaged Business Enterprises (DBE) Obligations

24. State and Agency agree to incorporate by reference the requirements of 49 CFR part 26 and State's DBE Program Plan, as required by 49 CFR part 26 and as approved by USDOT, into all contracts entered into under this Project Agreement. The following required DBE assurance shall be included in all contracts:

*"The contractor or subcontractor shall not discriminate on the basis of race, color, national origin, or sex in the performance of this contract. The contractor shall carry out applicable requirements of Title 49 CFR part 26 in the award and administration of federal-aid contracts. Failure by the contractor to carry out these requirements is a material breach of this contract, which may result in the termination of this contract or such other remedy as Agency deems appropriate. Each subcontract the contractor signs with a subcontractor must include the assurance in this paragraph (see 49 CFR 26.13(b))."*

25. State and Agency agree to comply with all applicable civil rights laws, rules and regulations, including Title V and Section 504 of the Rehabilitation Act of 1973, the Americans with Disabilities Act of 1990 (ADA), and Titles VI and VII of the Civil Rights Act of 1964.
26. The Parties hereto agree and understand that they will comply with all applicable federal, state, and local laws, regulations, executive orders and ordinances applicable to the work including, but not limited to, the provisions of ORS 279C.505, 279C.515, 279C.520, 279C.530 and 279B.270, incorporated herein by reference and made a part hereof; Title 23 CFR parts 1.11, 140, 635, 710, and 771, Title 49 CFR parts 24 and 26; 2 CFR 1201; Title 23, USC, Federal-Aid Highway Act, Title 41, Chapter 1, USC 51-58, Anti-Kickback Act; Title 42 USC; Uniform Relocation Assistance and Real Property Acquisition Policy Act of 1970, as amended, the provisions of the FAPG and FHWA Contract Administration Core Curriculum Participants Manual & Reference Guide. State and Agency agree that FHWA-1273 Required Contract Provisions shall be included in all contracts and subcontracts verbal and not by reference.

#### RIGHT OF WAY

27. Right of Way activities shall be conducted in accordance with the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970, as amended, ORS Chapter 35, FAPG, CFR, and the ODOT Right of Way Manual, Title 23 CFR part 710 and Title 49 CFR part 24.
28. State is responsible for proper acquisition of the necessary right of way and easements for construction and maintenance of projects. State or its consultant may perform acquisition of the necessary right of way and easements for construction and maintenance of the Project in accordance with the ODOT Right of Way Manual, and with the prior approval from State's Region Right of Way office.
29. If the Project has the potential of needing right of way, to ensure compliance in the event that right of way is unexpectedly needed, a right of way services agreement will be required. State, at Project expense, shall be responsible for requesting the obligation of project funding from FHWA. State, at Project expense, shall be entirely responsible for project acquisition and coordination of the right of way certification.
30. State or its consultant shall ensure that all project right of way monumentation will be conducted in conformance with ORS 209.155.

Agency/State  
Agreement No. 73000-00014155

31. State and Agency grant each other authority to enter onto the other's right of way for the performance of non-construction activities such as surveying and inspection of the Project.

#### RAILROADS

32. State shall follow State established policy and procedures when impacts occur on railroad property. The policy and procedures are available through the State's Liaison, who will contact State's Railroad Liaison on behalf of Agency. Only those costs allowable under Title 23 CFR part 140 subpart I, and Title 23 part 646 subpart B shall be included in the total Project costs; all other costs associated with railroad work will be at the sole expense of Agency, or others.

#### UTILITIES

33. State or its consultant shall follow State established statutes, policies and procedures when impacts occur to privately or publicly-owned utilities. Policy, procedures and forms are available through the State Utility Liaison or State's Liaison. State or its consultant shall provide copies of all signed utility notifications, agreements and Utility Certification to the State Utility & Railroad Liaison. Only those utility relocations, which are eligible for reimbursement under the FAPG, Title 23 CFR part 645 subparts A and B, shall be included in the total Project costs; all other utility relocations shall be at the sole expense of Agency, or others. Agency may send a written request to State, at Project expense, to arrange for utility relocations/adjustments lying within Agency jurisdiction. This request must be submitted no later than twenty-one (21) weeks prior to bid let date. Agency shall not perform any utility work on state highway right of way without first receiving written authorization from State.

#### GRADE CHANGE LIABILITY

34. Agency, if a County, acknowledges the effect and scope of ORS 105.755 and agrees that all acts necessary to complete construction of the Project which may alter or change the grade of existing county roads are being accomplished at the direct request of the County.
35. Agency, if a City, hereby accepts responsibility for all claims for damages from grade changes. Approval of plans by State shall not subject State to liability under ORS 105.760 for change of grade.
36. Agency, if a City, by execution of the Project Agreement, gives its consent as required by ORS 373.030(2) to any and all changes of grade within the City limits, and gives its consent as required by ORS 373.050(1) to any and all closure of streets intersecting the highway, in connection with or arising out of the Project covered by the Project Agreement.

#### MAINTENANCE RESPONSIBILITIES

37. Agency shall, at its own expense, maintain, operate, and provide power as needed upon Project completion at a minimum level that is consistent with normal depreciation and/or service demand and throughout the useful life of the Project. The useful life of the Project is defined in the Special Provisions. State may conduct periodic inspections during the life of the Project to verify that the Project is properly maintained and continues to serve the purpose for which federal funds were provided. Maintenance and power responsibilities shall survive any termination of the Project Agreement. In the event the Project will include or affect a state highway, this provision does not address maintenance of that state highway.

#### CONTRIBUTION

38. If any third party makes any claim or brings any action, suit or proceeding alleging a tort as now or hereafter defined in ORS 30.260 ("Third Party Claim") against State or Agency with respect to which the other Party may have liability, the notified Party must promptly notify the other Party in writing of the Third Party Claim and deliver to the other Party a copy of the claim, process, and all legal pleadings with respect to the Third Party Claim. Each Party is entitled to participate in the defense of a Third Party Claim, and to defend a Third Party Claim with counsel of its own choosing. Receipt by a Party of the notice and copies required in this paragraph and meaningful opportunity for the Party to participate in the investigation, defense and settlement of the Third Party Claim with counsel of its own choosing are conditions precedent to that Party's liability with respect to the Third Party Claim.
39. With respect to a Third Party Claim for which State is jointly liable with Agency (or would be if joined in the Third Party Claim), State shall contribute to the amount of expenses (including attorneys' fees), judgments, fines and amounts paid in settlement actually and reasonably incurred and paid or payable by Agency in such proportion as is appropriate to reflect the relative fault of State on the one hand and of Agency on the other hand in connection with the events which resulted in such expenses, judgments, fines or settlement amounts, as well as any other relevant equitable considerations. The relative fault of State on the one hand and of Agency on the other hand shall be determined by reference to, among other things, the Parties' relative intent, knowledge, access to information and opportunity to correct or prevent the circumstances resulting in such expenses, judgments, fines or settlement amounts. State's contribution amount in any instance is capped to the same extent it would have been capped under Oregon law, including the Oregon Tort Claims Act, ORS 30.260 to 30.300, if State had sole liability in the proceeding.
40. With respect to a Third Party Claim for which Agency is jointly liable with State (or would be if joined in the Third Party Claim), Agency shall contribute to the amount of expenses (including attorneys' fees), judgments, fines and amounts paid in settlement actually and reasonably incurred and paid or payable by State in such proportion as is appropriate to reflect the relative fault of Agency on the one hand and of State on the other hand in connection with the events which resulted in such expenses, judgments, fines or settlement amounts, as well as any other relevant equitable considerations. The relative fault of Agency on the one hand and of State on the other hand shall be determined by reference to, among other things, the Parties' relative intent, knowledge, access to information and opportunity to correct or prevent the circumstances resulting in such expenses, judgments, fines or settlement amounts. Agency's contribution amount in any instance is capped to the same extent it would have been capped under Oregon law, including the Oregon Tort Claims Act, ORS 30.260 to 30.300, if it had sole liability in the proceeding.

#### ALTERNATIVE DISPUTE RESOLUTION

41. The Parties shall attempt in good faith to resolve any dispute arising out of this Project Agreement. In addition, the Parties may agree to utilize a jointly selected mediator or arbitrator (for non-binding arbitration) to resolve the dispute short of litigation.

#### WORKERS' COMPENSATION COVERAGE

42. All employers, including Agency, that employ subject workers who work under this Project Agreement in the State of Oregon shall comply with ORS 656.017 and provide the required Workers' Compensation coverage unless such employers are exempt under ORS 656.126. Employers Liability Insurance with coverage limits of not less than five hundred thousand (\$500,000) must be

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included. State and Agency shall ensure that each of its contractors complies with these requirements.

#### LOBBYING RESTRICTIONS

43 Agency certifies by signing the Agreement that

- a) No federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any federal agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any federal contract, the making of any federal grant, the making of any federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any federal contract, grant, loan, or cooperative agreement.
- b) If any funds other than federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any federal agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.
- c) The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subgrants, and contracts and subcontracts under grants, subgrants, loans, and cooperative agreements) which exceed one hundred thousand dollars (\$100,000), and that all such subrecipients shall certify and disclose accordingly.
- d) This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by Title 31, USC Section 1352.
- e) Any person who fails to file the required certification shall be subject to a civil penalty of not less than ten thousand dollars (\$10,000) and not more than one hundred thousand dollars (\$100,000) for each such failure.

#### CERTIFICATION REGARDING DEBARMENT, SUSPENSION, INELIGIBILITY, AND VOLUNTARY EXCLUSION – LOWER TIER COVERED TRANSACTIONS

By signing this Agreement, Agency agrees to fulfill the responsibility imposed by 2 CFR Subpart C, including 2 CFR 180.300, 180.355, 180.360, and 180.365, regarding debarment, suspension, and other responsibility matters. For the purpose of this provision only, Agency is considered a participant in a covered transaction. Furthermore, by signing this Agreement, Agency is providing the certification for its principals required in Appendix to 2 CFR part 180 – Covered Transactions.

**AMENDMENT NUMBER 01**  
**ODOT Delivered Federal Project**  
**On Behalf of Josephine County**  
**Althouse Creek (Takilma Road) Bridge**  
**Key Number: 23161**

This is Amendment No. 01 to the Agreement between the State of Oregon, acting by and through its Department of Transportation, hereinafter referred to as "State" or ODOT," and Josephine County, acting by and through its elected officials, hereinafter referred to as "Agency," entered into on January 20, 2023.

It has now been determined by State and Agency that the Agreement referenced above shall be amended to update the Project title, update language and increase Preliminary Engineering costs.

1. Effective Date. This Amendment shall become effective on the date it is fully executed and approved as required by applicable law.

2. Amendment to Agreement.

a. ATTACHEMENT NO. 1 to AGREEMENT NO. 73000-00014155, SPECIAL PROVISIONS, Insert new Paragraphs 4 and 5 to read as follows:

4. State will purchase right of way in State's name. Upon completion of the Project, State and Agency agree that any right of way purchased outside of State jurisdiction will be transferred to Agency. Agency agrees to take title to the property and shall maintain the property pursuant to this Agreement. Agency shall use the property for public road purposes. If the property is no longer used for public road purposes, it shall revert to State.

5. To reflect the changes made to 3 U.S.C. 102 by the Infrastructure Investment and Jobs Act of 2021 (Public Law 117-58), Paragraph 11.b of Attachment No. 2 Federal Standard Provisions is deleted in its entirety.

b. RECITALS, Paragraph 2, Page 1, which reads:

2. Takilma Road and Democrat Creek Bridge No. 33C16 are a part of the county road system under the jurisdiction and control of Agency.

Shall be deleted in its entirety and replaced with the following:

2. Takilma Road and Althouse Creek Bridge No. 33C16 are a part of the county road system under the jurisdiction and control of Agency.

c. TERMS OF AGREEMENT, Paragraph 1, Page 1, which reads:

1. Under such authority, Agency and State agree to State delivering the Democrat Creek (Takilma Road) Bridge on behalf of Agency, hereinafter referred to as "Project." Project includes replacement of the existing bridge to meet current standards. The location of the Project is approximately as shown on the map attached hereto, marked "Exhibit A," and by this reference made a part hereof.

Shall be deleted in its entirety and replaced with the following:

1. Under such authority, Agency and State agree to State delivering the Althouse Creek (Takilma Road) Bridge on behalf of Agency, hereinafter referred to as "Project." Project includes replacement of the existing bridge to meet current standards. The location of the Project is approximately as shown on the map attached hereto, marked "Exhibit A," and by this reference made a part hereof.

d. TERMS OF AGREEMENT, Paragraph 3.a & d, Page 2, which reads:

3. Project Costs and Funding.

- a. The total Project cost is estimated at \$3,050,900.00, which is subject to change. Federal funds for this Project shall be limited to \$2,737,572.57. Agency shall be responsible for all remaining costs, including any non-participating costs, all costs in excess of the federal funds, and the 10.27 percent match for all eligible costs. Any unused funds obligated to this Project will not be paid out by State, and will not be available for use by Agency for this Agreement or any other projects. "Total Project Costs" means the estimated cost to complete the entire Project, and includes any federal funds, state funds, local matching funds, and any other funds.
- d. ODOT does not consider Agency to be a subrecipient or contractor under this Agreement for purposes of federal funds. The Catalog of Federal Domestic Assistance (CFDA) number for this Project is 20.205, title Highway Planning and Construction.

Shall be deleted in its entirety and replaced with the following:

3. Project Cost and Funding.

- a. The total Project cost is estimated at \$3,550,900.00, which is subject to change. Federal funds for this Project shall be limited to \$3,186,222.57. Agency shall be responsible for all remaining costs, including any non-participating costs, all costs in excess of the federal funds, and the 10.27 percent match for all eligible costs. Any unused funds obligated to this Project will not be paid out by State, and will not be available for use by Agency for this Agreement or any other projects. "Total

State/Agency  
Agreement No. 73000-00014155

Project Costs' means the estimated cost to complete the entire Project, and includes any federal funds, state funds, local matching funds, and any other funds.

- d. ODOT does not consider Agency to be a subrecipient or contractor under this Agreement for purposes of federal funds. The Catalog of Assistance Listing Number (ALN) for this Project is 20.205, title Highway Planning and Construction. Agency is not eligible to be reimbursed for work performed under this Agreement.
3. **Counterparts.** This Amendment may be executed in two or more counterparts (by facsimile or otherwise) each of which is an original and all of which when taken together are deemed one agreement binding on all Parties, notwithstanding that all Parties are not signatories to the same counterpart.
4. **Original Agreement.** Except as expressly amended above, all other terms and conditions of the original Agreement are still in full force and effect. Agency certifies that the representations, warranties and certifications in the original Agreement are true and correct as of the effective date of this Amendment and with the same effect as though made at the time of this Amendment.
6. **Electronic Signatures.** The Parties agree that signatures showing on PDF documents, including but not limited to PDF copies of the Agreement and amendments, submitted or exchanged via email are "Electronic Signatures" under ORS Chapter 84 and bind the signing Party and are intended to be and can be relied upon by the Parties. State reserves the right at any time to require the submission of the hard copy originals of any documents.

THE PARTIES, by execution of this Agreement, hereby acknowledge that their signing representatives have read this Agreement, understand it, and agree to be bound by its terms and conditions.

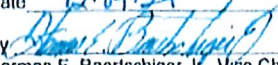
This Project is in the 2024-2027 Statewide Transportation Improvement Program (STIP), (Key #23161) that was adopted by the Oregon Transportation Commission on July 13, 2023 (or subsequently by amendment to the STIP)

State/Agency  
Agreement No 73000-00014155

JOSEPHINE COUNTY, by and through  
its elected officials

By   
John West, Chair

Date 12.04.24

By   
Horman E. Baertschiger Jr., Vice Chair

Date 12.04.24

By   
Andreas Blach, Commissioner

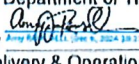
Date 12.04.24

LEGAL REVIEW APPROVAL (if  
required in Agency's Process)

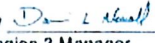
By   
Agency Counsel

Agency Contact:  
Neil Burgess  
County Engineer  
201 River Heights Way  
Grants Pass, OR 97527  
541-474-5460  
nburgess@josephinecounty.gov

STATE OF OREGON, by and through  
its Department of Transportation

By   
Delivery & Operations Division Manager  
Date 12/05/2024

APPROVAL RECOMMENDED

By   
Region 3 Manager  
Date 12/05/2024

APPROVED AS TO LEGAL  
SUFFICIENCY

By Karen Clevering Via E-mail  
Assistant Attorney General  
Date: 11/18/24

State Contact:  
Justin Shoemaker  
Transportation Project Manager  
100 Antelope Road  
White City, OR 97503  
541-200-5784  
Justin.d.shoemaker@odot.oregon.gov

**BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY  
STATE OF OREGON**

In the Matter of Temporary Delegation of       )  
Signing Authority During the Absence of       )  
the Josephine County Finance Director       )       **ORDER No. 2026-054**

**WHEREAS**, the Josephine County Finance Director is responsible for the administration and oversight of the financial operations of Josephine County; and

**WHEREAS**, the Josephine County Finance Director will be temporarily absent from County operations beginning September 28, 2026 through October 23, 2026; and

**WHEREAS**, during the temporary absence of the Finance Director, it is necessary to provide for continuity of County financial operations and the timely review, approval, and execution of documents ordinarily requiring the signature or approval of the Finance Director; and

**WHEREAS**, **Trevin Mikels, Assistant Finance Director**, possesses the knowledge and experience necessary to provide such continuity during the Finance Director's temporary absence; and

**WHEREAS**, the Board of County Commissioners has determined that it is in the best interest of Josephine County to temporarily delegate signing authority to **Trevin Mikels, Assistant Finance Director**, for the limited period of the Finance Director's absence.

**NOW, THEREFORE, based upon the foregoing and good cause appearing, IT IS HEREBY ORDERED** that **Trevin Mikels, Assistant Finance Director**, is temporarily authorized to review, approve, and execute documents on behalf of the Josephine County Finance Department that would ordinarily require the signature or approval of the Finance Director, subject to all applicable County policies, adopted budget authority, ordinances, and state and federal law.

**IT IS FURTHER ORDERED** that the authority granted by this Order is limited to those actions necessary to maintain the ordinary and ongoing operations of the Josephine County Finance Department and shall not exceed the authority otherwise vested in the Finance Director.

**IT IS FURTHER ORDERED** that this temporary delegation does not constitute an appointment as Finance Director or Budget Officer and does not transfer any authority that, by law or prior Order of the Board, must be separately designated or exercised by the Board of County Commissioners.

**IT IS FURTHER ORDERED** that the authority granted herein shall be effective beginning September 28, 2026 and shall automatically terminate at the close of business on October 23, 2026, or upon the Finance Director's return to duty, whichever occurs first, unless otherwise extended or modified by further action of the Board of County Commissioners.

DATED this 22<sup>nd</sup> day of September 2026.

JOSEPHINE COUNTY  
BOARD OF COMMISSIONERS

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Ron A. Smith, Chair

---

Colene M. Martin, Vice-Chair

---

Gary L. Richardson, Commissioner

ORDER NO. 2026-054



## Josephine County Board of Commissioners

### AGENDA REQUEST FOR BOARD OF COMMISSIONERS

**Agenda Requests are due by NOON on Monday of the week scheduled for Administration Workshop**  
**Requests received after that time will be placed on the Administration Workshop agenda for the following week**

**If sending documents electronically – please send to these two:**

**[kaustin@josephinecounty.gov](mailto:kaustin@josephinecounty.gov) [nurbach@josephinecounty.gov](mailto:nurbach@josephinecounty.gov)**

**REVISED July 2025**

|                                                                                            |            |
|--------------------------------------------------------------------------------------------|------------|
| <b>Date Submitted to BCC</b>                                                               | 09/14/2026 |
| <b>Administration Workshop Meeting Date (Thursday)</b>                                     | 09/22/2026 |
| <b>WBS Meeting Date (Wednesday)</b> Note: Second Wednesday of the month is evening session |            |

|                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|-----------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>AGENDA TITLE: ODOT Grant Agreement 35810 – 1</b>                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>Department/Contact Person (Include Title and Ext. #)</b>                 | Scott Chancey, Transit Program Supervisor                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Presenter (Include Name and Title)</b>                                   | Scott Chancey, Transit Program Supervisor                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Background information</b>                                               | <p>ODOT is aligning grant periods to match the federal fiscal year rather than calendar year. This shifts the agreement starts from July 1<sup>st</sup> to October 1<sup>st</sup>. To prevent a lapse in funding for this transition period, there are gap period agreements to bridge between the July start to the October start date.</p> <p>ODOT Agreement 35810 is one of those gap agreement and provides funding for the entire biennial period and is extended until October 2027, when a new agreement would go into effect.</p> <p>These funds can be used for transit programs only and specifically are for the rural areas of Josephine County (5311 program) or for services that benefit the elderly/disables (5310 program). The funding for this grant extension period is for project administration and preventative maintenance for vehicles used in transit service.</p> <p>The original grant agreement 35810 and this additional quarter of funding equals \$594,707, with a required local match of \$68,067. Local match comes from state funds collected for transit operations and does not require any Josephine County general funds.</p> |
| <b>Action you are requesting from the Board</b>                             | Signature on ODOT Agreement 35810 -1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>Reviewed by Finance Director (If yes, Finance's signature required)</b>  | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>Reviewed by Legal Counsel (If yes, Legal's signature required)</b>       | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>Reviewed by Information Technology (If yes, IT's signature required)</b> | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>Total Revenue, Cost, or Pass-Thru Funds to the County</b>                | \$594,707 total revenue for 2025-2027, local match of \$68,067                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Notes or Special Instructions to BCC Staff</b>                           | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

| Title of Document(s)<br>Submitted<br><u>All exhibits must be clearly marked</u> | Number of original documents submitted | Are all signatures on the documents? Y/N or BCC only | Are additional signatures needed? Y/N | Will a state or federal agency be signing the document? Y/N | Will additional signatures be received electronically? Y/N |
|---------------------------------------------------------------------------------|----------------------------------------|------------------------------------------------------|---------------------------------------|-------------------------------------------------------------|------------------------------------------------------------|
| ODOT Agreement 35810-1                                                          | 1                                      | N                                                    | Y                                     | Y                                                           | Y                                                          |

**AMENDMENT NUMBER 1  
ODOT GRANT AGREEMENT NO. 35810  
Josephine County**

The **State of Oregon**, acting by and through its Department of Transportation, hereinafter referred to as **State**, and **Josephine County**, hereinafter referred to as **Recipient**, entered into an Agreement on **August 15, 2025**. Said Agreement is to secure financial assistance to complete the activities described in Exhibit A.

It has now been determined by **State** and **Recipient** that the Agreement referenced above, although remaining in full force and effect, shall be amended to extend the Agreement period, increase the grant amount, add the Quarter 9 Gap Project and revise Exhibit A, and revise Exhibit B.

**Page 1, Agreement, Paragraph 1, which reads:**

1. **Effective Date.** This Agreement shall become effective on the later of **July 1, 2025** or the date when this Agreement is fully executed and approved as required by applicable law. Unless otherwise terminated or extended, Grant Funds under this Agreement shall be available for Project Costs incurred on or after **July 1, 2025** and on or before **June 30, 2027**. No Grant Funds are available for any expenditures after the Expiration Date. State's obligation to disburse Grant Funds under this Agreement shall end as provided in Section 10 of this Agreement.

**Shall be deleted in its entirety and replaced with the following:**

1. **Effective Date.** This Agreement shall become effective on the later of **July 1, 2025** or the date when this Agreement is fully executed and approved as required by applicable law. Unless otherwise terminated or extended, Grant Funds under this Agreement shall be available for Project Costs incurred on or after **July 1, 2025** and on or before **September 30, 2027**. No Grant Funds are available for any expenditures after the Expiration Date. State's obligation to disburse Grant Funds under this Agreement shall end as provided in Section 10 of this Agreement. -

**Page 1, Agreement, Paragraph 3, which reads:**

3. **Project Cost; Grant Funds; Match.** The total project cost is estimated at **\$578,424.00** ("Project Costs"). In accordance with the terms and conditions of this Agreement, State shall provide Recipient an amount not to exceed **\$519,020.00** (the "Grant Funds") for eligible costs described in Section 6.a. hereof. Recipient shall provide matching funds for all Project Costs as described in Exhibit A. Recipient will be responsible for all Project Costs not covered by the Grant Funds.

**Shall be deleted in its entirety and replaced with the following:**

3. **Project Cost; Grant Funds; Match.** The total project cost is estimated at **\$662,774.00** ("Project Costs"). In accordance with the terms and conditions of this Agreement, State shall provide Recipient an amount not to exceed **\$594,707.00** (the "Grant Funds") for eligible costs described in Section 6.a. hereof. Recipient shall provide matching funds for all Project Costs as described in Exhibit A. Recipient will be responsible for all Project Costs not covered by the Grant Funds.

**Exhibit A shall be deleted in its entirety and replaced with the attached Revised Exhibit A. All references to "Exhibit A" shall hereinafter be referred to as "Revised Exhibit A."**

**Exhibit B shall be deleted in its entirety and replaced with the attached Revised Exhibit B. All references to "Exhibit B" shall hereinafter be referred to as "Revised Exhibit B."**

Josephine County/State of Oregon  
Agreement No. 35810

This Amendment may be executed in several counterparts (facsimile or otherwise) all of which when taken together shall constitute one agreement binding on all Parties, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of this Amendment so executed shall constitute an original.

**THE PARTIES**, by execution of this Agreement, hereby acknowledge that their signing representatives have read this Agreement, understand it, and agree to be bound by its terms and conditions.

**SIGNATURE PAGE TO FOLLOW**

**Josephine County**, by and through its

By \_\_\_\_\_

(Legally designated representative)

Name \_\_\_\_\_

(printed)

Date \_\_\_\_\_

By \_\_\_\_\_

Name \_\_\_\_\_

(printed)

Date \_\_\_\_\_

**APPROVED AS TO LEGAL SUFFICIENCY**

(If required in local process)

By *M. J. Hicks*

Recipient's Legal Counsel

Date 8/18/26

**Recipient Contact:**

Scott Chancey  
201 River Heights Way  
Grants Pass, OR 97527  
1 (541) 474-5441  
schancey@co.josephine.or.us

**State Contact:**

Jennifer Boardman  
355 Capitol St NE, MS43  
Salem, OR 97301  
1 (541) 774-6371  
Jennifer.Boardman@odot.oregon.gov

**State of Oregon**, by and through its  
Department of Transportation

By \_\_\_\_\_

Andrea Durbin

Public Transportation Office Manager

Date \_\_\_\_\_

**APPROVAL RECOMMENDED**

By \_\_\_\_\_

Jennifer Boardman

Date \_\_\_\_\_

07/20/2026

**APPROVED AS TO LEGAL SUFFICIENCY**

(For funding over \$250,000)

By \_\_\_\_\_

Assistant Attorney General

Name \_\_\_\_\_

Nina R. Englander by email

(printed)

Date \_\_\_\_\_

06/25/2025

**Signed Agreement Return Address: ODOTPTDReporting@odot.oregon.gov**

**Revised Exhibit A**  
**Project Description and Budget**

**Project Description/Statement of Work**

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                     |                     |                    |               |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|---------------------|--------------------|---------------|
| <b>Project Title: 5311 Josephine County 35810</b><br><i>Vehicle preventative maintenance and project administration</i><br><br><i>FTA funding Category A. Project ready to execute or has been executed. Funds available for reimbursement.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                     |                     |                    |               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Total               | Grant Amount        | Local Match        | Match Type(s) |
| <b>P-25-3131-01 Item #1: Preventive Maintenance</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                     |                     |                    |               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | \$168,699.00        | \$151,374.00        | \$17,325.00        | Local         |
| <b>P-25-3131-02 Item #1: Project Admin.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                     |                     |                    |               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | \$152,964.00        | \$137,255.00        | \$15,709.00        | Local         |
| <b>Sub Total</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>\$321,663.00</b> | <b>\$288,629.00</b> | <b>\$33,034.00</b> |               |
| <b>Project Title: 5311 Josephine County 35810</b><br><i>Vehicle preventive maintenance and project administration</i><br><br><i>FTA funding Category B. Project identified not ready to execute. Funds not available until FTA grant execution and subgrant agreement revision to release funds for reimbursement.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                     |                     |                    |               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Total               | Grant Amount        | Local Match        | Match Type(s) |
| <b>P-25-6193-01 Item #1: Preventive Maintenance</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                     |                     |                    |               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | \$168,701.00        | \$151,375.00        | \$17,326.00        | Local         |
| <b>P-25-6193-02 Item #1: Project Admin.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                     |                     |                    |               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | \$88,060.00         | \$79,016.00         | \$9,044.00         | Local         |
| <b>Sub Total</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>\$256,761.00</b> | <b>\$230,391.00</b> | <b>\$26,370.00</b> |               |
| <b>Project Title: Quarter 9 Gap Funding 5311 Josephine County 35810</b><br><i>Project Administration</i><br><br><i>FTA funding Category B. Project identified not ready to execute. Funds not available until FTA grant execution and subgrant agreement revision to release funds for reimbursement.</i><br><br><i>PTO is shifting the federal subgrant agreement periods to better align with funding availability. With this shift, there is a gap in funding continuity from the current biennium to the next. Gap funding allocation amounts are one eighth of subrecipients' 25-27 allocation, which covers the one quarter that would be unfunded if 25-27 subgrants were allowed to expire before the 27-29 subgrants go into effect.</i><br><br><i>Funds in this Project are being provided to help subrecipients sustain existing service during that one-time gap (otherwise referred to as Quarter 9).</i> |                     |                     |                    |               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Total               | Grant Amount        | Local Match        | Match Type(s) |
| <b>P-25-6282-01 Item #1: Project Admin.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                     |                     |                    |               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | \$84,350.00         | \$75,687.00         | \$8,663.00         | Local         |
| <b>Sub Total</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>\$84,350.00</b>  | <b>\$75,687.00</b>  | <b>\$8,663.00</b>  |               |
| <b>Grand Total</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <b>\$662,774.00</b> | <b>\$594,707.00</b> | <b>\$68,067.00</b> |               |

**The requirements of the National Environmental Policy Act (NEPA) and all other applicable federal environmental laws (e.g., the Endangered Species Act, the Clean Water Act, the National Historic Preservation Act) apply to all projects that receive FTA funds (directly or through the State). The process of addressing compliance with NEPA and all other applicable federal environmental laws is referred to as the environmental review process. For any project receiving FTA funds, subrecipients are responsible for coordinating with ODOT prior to incurring any costs or conducting any project-related activities to confirm requirements for complying with the environmental review**

**process. The subrecipient is responsible for submitting all documentation required to comply with the environmental review process to ODOT for approval by the FTA.**

**The following activities cannot proceed until the FTA concurs in writing that the environmental review process is complete per 23 CFR 771.113(a)(1):**

- final design activities (design beyond 30%).**
- property acquisition (includes purchase discussions with property owners that imply or are explicitly binding).**
- purchase of construction materials (including EV chargers and bus shelters) or rolling stock,**
- project construction activities (including construction, alteration, or repair [including dredging, excavating, and painting] of buildings, structures, or other real property).**

**Proceeding with any of these activities prior to FTA concurrence that the environmental review process is complete may deem the entire project ineligible to receive federal funding.**

## 1. BACKGROUND

### A. Project Administration

*For the Section 5311 program only, project administrative expenses incurred by a local provider may be treated as a separate cost category from capital, planning, or operating expenses.*

### B. Vehicle Preventive Maintenance

*Preventive maintenance provides funding to ensure that fleet vehicles are maintained in a state of good repair through their useful life.*

## 2. PROJECT DESCRIPTION

### A. Project Administration- In-house

*This Agreement provides funding for Recipient's administrative expenses not directly related to providing transit services, but which support the effective, efficient, and safe delivery of those services. Administrative activities will be conducted in-house by Josephine County staff. Work could include ongoing financial budgeting, grant management, planning, capital assessments, contract management, reporting, marketing, and public outreach in Josephine and Jackson Counties in Oregon.*

### B. Vehicle Preventive Maintenance- In- house

*This Agreement provides funding for preventive maintenance on vehicles to be performed by Josephine County Staff with limited activities by outside vendors should not be used for facility maintenance. Any outside vendors services must be contracted using methods approved under agencies procurement policies. Preventive maintenance ensures that assets are kept in good condition per manufacturer's recommendations and that safety standards are met.*

*This Agreement does not provide for maintenance on staff vehicles, vehicles used for business of Recipient, or maintenance vehicles.*

*For some activities, FTA completes the NEPA process during grant review, using the information in the grant application. Written NEPA concurrence from FTA is not required for these activities, which include but are not limited to:*

- Preventative maintenance that involves NO physical changes and/or alterations*
- Purchase of equipment that is not part of a larger project and can be accommodated in existing building(s) or facility(-ies) with NO physical changes, alterations, or installation required*

*Recipients should coordinate with the State prior to incurring any costs or conducting any*

*project-related activities to confirm NEPA requirements.*

*This agreement includes only items as related to vehicles and does not include facility maintenance.*

### 3. PROJECT DELIVERABLES

#### A. Project Administration

*Recipient shall perform administrative activities to support service sustainability as follows: ongoing financial resource budgeting and allocation, service coordination, capital asset replacement planning, contract management, reporting, marketing and outreach, and planning. All administrative tasks are provided by the staff at Josephine County Oregon.*

#### B. Vehicle Preventive Maintenance

*Recipient will complete all vehicle preventive maintenance tasks prior to the expiration date of this Agreement.*

*Vehicle preventive maintenance expenses include activities, supplies, materials, labor, services, and associated costs required to preserve or extend the functionality and serviceability of the asset in a cost-effective manner. Preventive maintenance includes but is not limited to the following: oil changes; engine tune-ups; tire purchases; tire maintenance; annual vehicle inspections; scheduled or routine maintenance; and associated parts, supplies, and labor. Preventative maintenance expenses should not include equipment that is part of a larger project and does not change or alter existing buildings or facilities or requires installation of any equipment for the maintenance of the vehicles.*

*Preventive maintenance under this Agreement does not include repairs resulting from motor vehicle accidents covered by insurance, repairs on vehicles or components under warranty, or repairs which are paid for in other agreements or contracts.*

*Recipient must provide to State, a plan for scheduled preventive maintenance. Reimbursement requests must match the activities or purchases described in Recipient's plan.*

*A major component replacement (such as an engine or transmission), that keeps an asset within useful life (overhaul) or extends the useful life (rebuild) may be eligible for reimbursement under this Agreement, pending verification of conformance to Recipient's adopted maintenance plan and requirements detailed in Federal Transit Administration Circular 5010.1E (Award Management Requirements), Chapter IV.*

*Overhaul is performed as a planned or concentrated preventive maintenance activity and is intended to enable the vehicle to perform to the end of the original useful life. A vehicle must meet at least 40 percent of its useful life to be considered for an overhaul.*

*Recipient must obtain pre-approval from State prior to any vehicle overhaul. Vehicle rebuilds must extend the useful life of the vehicle by at least four years.*

*If local circumstances change, for example, vehicle type or asset disposition, Recipient's maintenance plan must be updated to reflect that change.*

### 4. PROJECT ACCOUNTING and MATCHING FUNDING

#### A. Project Administration

*Generally accepted accounting principles and Recipient's accounting system determine those costs that are to be accounted as administrative expenses. Eligible project administrative expense may include but are not limited to: administrative staff salaries; overhead expenses; marketing expenses; insurance premiums and payments to a self-insurance reserve; office supplies; office equipment; telecommunications; facilities and equipment rental. Administrative costs for coordination of transit services are eligible as project administration.*

*Sources of funding that may be used as matching funding for this Agreement include local funds, Statewide Transportation Improvement Fund, service contract revenue, advertisement and other earned income, cash donations, and verifiable in-kind contributions integral to the project budget. In-kind contributions claimed as matching funds must be properly documented and reported to State. Recipient may not use passenger fares as matching funds.*

**B. Vehicle Preventive Maintenance**

*Sources that may be used as Recipient's matching funds for this Agreement include Statewide Transportation Improvement Formula Fund, local funds, service contract revenue, advertisement income, other earned income, cash donations, and other verifiable in-kind contributions that are integral to the project budget. Recipient may not use passenger fares as matching funds. State's obligation to reimburse Project costs is contingent upon Recipient first paying or otherwise contributing its minimum match amount set forth in this Exhibit A.*

**5. REPORTING and INVOICING REQUIREMENTS**

**A. Project Administration**

*Recipient will request reimbursement for covered expenses incurred during each period as prescribed by State. Copies of invoices must be submitted for all vendor charges.*

*In-house charges must be documented showing:  
Time specifically associated with the project  
Hours, individuals or project tasks that are associated with each reimbursement*

*In addition, Recipient must provide a summary of the work performed pursuant to this Agreement in its agency periodic report.*

*Vendor invoices must be attached.  
Be legible  
Match the amount requested for reimbursement  
Include a description of the service (hours, rate, quantity of service)  
Include the date(s) of the service  
Include the agency providing the service*

*Subrecipients should not attach invoices that are not directly related to the expenses that are requested on the reimbursement request document.*

**B. Vehicle Preventive Maintenance**

*Recipient will request reimbursement for covered expenses incurred during each period as prescribed by State and described in Recipient's preventive maintenance plan for this Agreement. Recipient must maintain and provide supporting documents detailing the total expenses for allowable maintenance activities incurred during the period. Recipient may list costs on a form provided by State or provide vendor invoices.*

*Vendor invoices must be attached and include the follow:  
-Be legible  
-Match the amount requested for reimbursement  
-Include a description of the service (hours, rate, quantity of service)  
-Include the date(s) of the service  
-Include the agency providing the service  
-Subrecipients should not attach invoices that are not directly related to the expenses that are requested on the reimbursement request document.  
If multiple grants are used for the preventive maintenance spreadsheets or similar documents, it must clearly show how these funds are associated with the costs requested in each reimbursement request*

*First year maximum disbursement: no more than 50 percent of the total fund amount of any*

*single activity line item will be disbursed, regardless of the amount of any reimbursement request.*

*Second year maximum disbursement: no more than 50 percent of the total fund amount of any single activity line item, plus any remaining portion from the first fiscal year period.*

**Revised Exhibit B**  
**FINANCIAL INFORMATION**

The information below will assist auditors to prepare a report in compliance with the requirements of 2 CFR part 200, subpart F.

This Agreement is financed by the funding source indicated below:

|                                          |                                                                                                                                                            |                                            |                                                     |
|------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------|-----------------------------------------------------|
| <b>Federal Program</b><br>49 U.S.C. 5311 | <b>Federal Funding Agency</b><br>U.S. Department of Transportation<br>Federal Transit Administration<br>915 Second Avenue, Suite 3142<br>Seattle, WA 98174 | <b>CFDA Number</b><br><b>20.509 (5311)</b> | <b>Total Federal Funding</b><br><b>\$594,707.00</b> |
|------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------|-----------------------------------------------------|

|                                                                                                      |
|------------------------------------------------------------------------------------------------------|
| <b>Administered By</b><br>Public Transportation Office<br>355 Capitol St NE, MS43<br>Salem, OR 97301 |
|------------------------------------------------------------------------------------------------------|



## Josephine County Board of Commissioners

### AGENDA REQUEST FOR BOARD OF COMMISSIONERS

**Agenda Requests are due by NOON on Monday of the week scheduled for Administration Workshop**  
**Requests received after that time will be placed on the Administration Workshop agenda for the following week**

**If sending documents electronically – please send to these two:**

**[kaustin@josephinecounty.gov](mailto:kaustin@josephinecounty.gov) [nurbach@josephinecounty.gov](mailto:nurbach@josephinecounty.gov)**

**REVISED July 2025**

|                                                                                     |            |
|-------------------------------------------------------------------------------------|------------|
| Date Submitted to BCC                                                               | 09/14/2026 |
| Administration Workshop Meeting Date (Thursday)                                     | 09/22/2026 |
| WBS Meeting Date (Wednesday) Note: Second Wednesday of the month is evening session |            |

|                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|----------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>AGENDA TITLE: SPARE Renewal form #SL-7542</b>                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| Department/Contact Person (Include Title and Ext. #)                 | Scott Chancey, Transit Program Supervisor                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Presenter (Include Name and Title)                                   | Scott Chancey, Transit Program Supervisor                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Background information                                               | <p>Spare Labs, LLC is the software company that the Transit Department uses for the managing and dispatching of the door to door services for the elderly and disabled.</p> <p>The software manages the client database, schedules rides for FTA compliance, groups rides and assigns those rides to individual drivers.</p> <p>Spare is the software that has been used for the past 3+ years and performs above expectations in comparison to past software platforms. There is no intention to change software at this time. Spare is also the same software provider for the public facing ride planning platform and real time bus arrival app. Which is a separate agreement, but is part of the overall transit system information available to the public.</p> <p>Total agreement is \$50,400 and will be paid for with FTA funds supplied by ODOT.</p> <p>There are no Josephine County general funds used for any part of this project. Funds for this agreement come from State federal funds that are allocated and authorized for the provision of transit services only.</p> |
| Action you are requesting from the Board                             | Signature or authorization to sign Spare agreement SL 7542                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Reviewed by Finance Director (If yes, Finance's signature required)  | NA – was included in FY 2026-2027 budget                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| Reviewed by Legal Counsel (If yes, Legal's signature required)       | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| Reviewed by Information Technology (If yes, IT's signature required) | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| Total Revenue, Cost, or Pass-Thru Funds to the County                | \$50,400                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| Notes or Special Instructions to BCC Staff                           | NA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

| Title of Document(s)<br>Submitted<br><u>All exhibits must be<br/>clearly marked</u> | Number of<br>original<br>documents<br>submitted | Are all signatures on<br>the documents? Y/N<br>or BCC only | Are additional<br>signatures needed?<br>Y/N | Will a state or<br>federal agency be<br>signing the<br>document? Y/N | Will additional signatures<br>be received electronically?<br>Y/N |
|-------------------------------------------------------------------------------------|-------------------------------------------------|------------------------------------------------------------|---------------------------------------------|----------------------------------------------------------------------|------------------------------------------------------------------|
| Spare #SL-7542                                                                      | 1                                               | N                                                          | Y                                           | Y                                                                    | Y                                                                |



### Customer Information

**Customer Name** Josephine Community Transit  
**Customer Legal Name** N/A  
**Primary Contact Name** Scott Chancey  
**Title** Transit Program Supervisor  
**Phone Number** (541) 474 - 5441  
**Email** Schancey@josephinecounty.org

### Accounts Payable Information

**Billing Address** 500 NW 6th St.  
Grants Pass, Oregon 97562  
**AP Contact Name** Scott Chancey  
**Title** Transit Program Supervisor  
**Phone Number** (541) 474 - 5441  
**Email** Schancey@josephinecounty.org

### Order Summary

**Order Number** #SL-7542  
**Option Contract Term** December 1st, 2026 - November 30th, 2027  
**Billing Frequency** Annually -  
**Billing Method** Email  
**Payment Terms** Net 30  
**Currency** USD -

## Services Summary

**Services:** Spare Platform (SaaS) with Spare Pooled OnDemand ("Spare Pooled OnDemand"), which manages, dispatches and handles bookings for pooled on-demand and scheduled transportation in the Josephine Community Transit (the "Service(s)").

**Service Capacity:**

Dedicated On-Demand Vehicles (vehicles owned or contracted by Customer) includes minimum 6 Active Dedicated vehicles, access to the Spare white labeled Rider app, Spare Driver app, Spare Platform administration panel, and system administrator training.

## Annual Recurring Fees

| Item                       | Price    | Quantity | Total    |
|----------------------------|----------|----------|----------|
| Spare Software Platform    | \$15,750 | 1        | \$15,750 |
| Base Dedicated Vehicle     | \$4,200  | 6        | \$25,200 |
| Spare Engage               | \$6,300  | 1        | \$6,300  |
| Spare Voice Package        | \$525    | 6        | \$3,150  |
| Total Annual Recurring Fee |          |          | \$50,400 |

**Miscellaneous Charges**

Company will not initiate these miscellaneous costs, unless written pre-approval has been provided by the Customer.

| Item                                     | Charge Rate                                                                     |
|------------------------------------------|---------------------------------------------------------------------------------|
| Additional On-Site Training (per person) | Cost + 10%                                                                      |
| Travel and Meals                         | Fees are in accordance with U.S. General Services Administration Per Diem Rates |

## Subscription Terms & Conditions

The terms and conditions set out at [spare.com/msa](https://spare.com/msa) ("Agreement") apply to this Renewal Form ("Renewal Form") between SPARE LABS INC ("Company") and Josephine Community Transit as ("Customer") (collectively the "Parties" or individually a "Party"). The effective date of this Renewal Form is December 1st, 2026 ("Order Form Effective Date"), this is in reference to Order Form SL-4328 it's option years.

### Additional Terms:

- By signing this Order Form, you agree to: (a) purchase the products and services pursuant to the terms and fees set forth herein; (b) pay the Services Fees (and applicable sales and use taxes) and authorize Company to submit invoices for such payment; and (c) be bound by the terms and conditions in the Agreement. This Order Form will renew as set forth in the Terms, unless expressly stated otherwise herein.
- You may increase Service Capacity during the Term, but not downgrade. When upgrading, the new Services Fees become immediately applicable. Upon upgrade, the new Services Fees would be charged on a prorated basis for the remainder of the Term.
- CPI Increase. The Fees shall be increased on each anniversary of the first day of the Term (the "CPI Adjustment Date") by an amount equal to the greater of a) 5% or b) the increase, if any, in the CPI (as defined below) in effect for December of the immediately preceding calendar year (the "Most Recent Calendar Year") over the CPI in effect for December of the calendar year immediately preceding the Most Recent Calendar Year. The term "CPI" shall mean the Consumer Price Index for All Urban Consumers (CPI-U) for the U.S. City Average for All Items (1984=100) published by the United States Department of Labor, Bureau of Labor Statistics.

IN WITNESS WHEREOF, the Parties hereto have executed this Order Form as of the Order Form Effective Date.

|                |                             |
|----------------|-----------------------------|
| Spare Labs Inc | Josephine Community Transit |
| By<br>Name:    | By<br>Name:                 |
| Title:         | Title:                      |
| Date:          | Date:                       |

## **EXHIBIT A**

### Statement of Work

#### **Provisioning of Administrator User Accounts**

Company will supply administrative user accounts with proper privileges to administrators of the Spare Platform system, as may be agreed between Company and Customer. Users and customers of Spare Platform are bound by Spare Platform terms, as outlined at <https://spare.com/terms-of-use>, and Spare Open API terms, as outlined at <https://developers.sparelabs.com/docs/public/terms-of-use>.

#### **Customer Training (On-site or via Webinar)**

Company will supply administrator training through a two-hour training course via webinar. Training can be set at a time convenient for Customer, as may be agreed between Company and Customer.

#### **Supply Service Documentation**

Company will supply documentation on the Spare Platform, including the web-based administration panel, the Spare Open API, and the Spare Driver app, as may be agreed between Company and Customer.

#### **Service Provisioning**

Company will deploy the Spare Platform with the Spare Pooled OnDemand (Spare Driver app, Spare Open API, and Spare Platform administration panel), and Spare Smart Matching and Dispatching Algorithm (Spare Engine) on an independent, secure, and scalable datacenter and web server system with disaster recovery capability, as may be agreed between Company and Customer.

**EXHIBIT B**

**Payment Schedule**

| Product                | Quantity | Rate     | Amount   | Frequency | Term Start    | Term End       | Initial Invoice Date |
|------------------------|----------|----------|----------|-----------|---------------|----------------|----------------------|
| Spare Platform         | 1        | \$15,750 | \$15,750 | Annually  | Dec 1st, 2026 | Nov 30th, 2027 | Dec 1st, 2026        |
| Base Dedicated Vehicle | 6        | \$4,200  | \$25,200 | Annually  | Dec 1st, 2026 | Nov 30th, 2027 | Dec 1st, 2026        |
| Spare Engage           | 1        | \$6,300  | \$6,300  | Annually  | Dec 1st, 2026 | Nov 30th, 2027 | Dec 1st, 2026        |
| Voice                  | 6        | \$525    | \$3,150  | Annually  | Dec 1st, 2026 | Nov 30th, 2027 | Dec 1st, 2026        |

**In the Matter of an Appointment to the  
Josephine County Economic Development  
Grant Advisory Committee**

*Gary L. Richardson, Commissioner*



**BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY  
STATE OF OREGON**

**In the Matter of an Appointment  
to the Josephine County Fair Board**

)  
)

**Resolution No. 2026-036**

**WHEREAS**, it has come to the attention of the Board of County Commissioners that there is a vacancy on the Josephine County Fair Board;

**WHEREAS**, it is both proper and necessary that the Board of County Commissioners fill said vacancy by making an appointment as provided herein;

**NOW, THEREFORE, IT IS HEREBY RESOLVED**, that the following person be re-appointed to said Josephine County Fair Board; with terms expiring as hereinafter set forth.

**Karl Heackler -At Large**

Re-appointed to a 3-year term; said term to expire 01/01/2030.

**DONE and DATED this \_\_\_\_ day of September 2026.**

**JOSEPHINE COUNTY  
BOARD OF COMMISSIONERS**

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*Ron A. Smith, Chair*

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*Colene M. Martin, Vice-Chair*

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*Gary L. Richardson, Commissioner*

# Advisory Committee Application for Board Appointment

Submitted via county website form | Subject: Advisory Committee Application for Board Appointment

**Name:** Karl Haeckler

**Phone:** [REDACTED]

**Email:** [REDACTED]

**Occupation:** Mental Health Manager

**Employer:** US Dept of Veterans Affairs

**Address:** [REDACTED]

**Home-address:** —

**Live-in-county:** Yes

**City:** No

**Owns-property-in-county:** Yes

**Property-in-city-limits:** No

**Length-of-time:** 40+ years

**Preference:** Renewal Application for another term on Fair Board

**Why:** I'm completing my first 3-year term and really enjoy this position. I would like the opportunity for another term of service.

**Why:** Completing first 3-year term on Fairboard. Am reapplying for a second term.

**Subject-matter:** Fairboard

**Previous-service:** Yes

**Previous-committee:** Fairboard

**Hours:** 4+

**Days-available:** Mon

**Days-available:** Tues

**Days-available:** Wed

**Days-available:** Thurs

**Days-available:** Fri

**Reference:** [REDACTED]

**Influence:** No

**From-whom:** —

**Stakeholder:** No

**Circumstances:** No

**Explain:** —

**Explain:** —

**Family:** No

**How-so:** GRANTS PASS

**Conflict:** No

**Signature:** Yes